

TITLE 11: BUILDINGS AND CONSTRUCTION

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11.04: INTERNATIONAL BUILDING CODE

11.04.010: ADOPTION OF THE 2021 INTERNATIONAL BUILDING CODE

Section **11.04.010** of the Pitkin County code adopting the 2015 edition of the International Building Code is hereby repealed and reenacted to read as follows:

Pursuant to the powers and authority conferred by the laws of the State of Colorado and Pitkin County, Colorado, there is hereby adopted and incorporated herein by reference as if fully set forth those regulations contained in by reference thereto, the International Building Code, 2021 Edition, including Appendices C, E, I and J, as published by the International Code Council, 4051 West Flossmoor Road, Country Club Hills, Illinois, 60478-5795, except as otherwise provided by amendment or deletion as contained herein.

11.04.020 Copies on file

The Pitkin County Building Division shall keep on file in its office in Aspen, Colorado, a full and complete copy of the 2021 International Building Code, as adopted by this Article, and said copies shall be open to public inspection at all times during the regular business hours of said Division.

11.04.030 Severability

The provisions of this chapter are declared to be severable so that in the event any section or portion of any section hereof shall be declared by a court of competent jurisdiction to be unconstitutional, unlawful, or otherwise unenforceable, the remaining sections and provisions hereof not so found shall continue in full force and effect.

11.04.040 AMENDMENTS TO THE 2021 INTERNATIONAL BUILDING CODE

Section **101.1 Title** is hereby amended as follows:

These regulations shall be known as the Building Code of Pitkin County, hereinafter referred to as “this code.”

Section 101.4.4 Property Maintenance is hereby deleted in its entirety.

Section 101.4.5 Fire Prevention is hereby amended to add the following sentence to the end of the section:

The provisions shall apply as they are adopted and amended by the Fire District having Jurisdictional Authority.

Add Section 101.4.8 Electrical:

The provisions of the most recent National Electric Code adopted by the State of Colorado shall apply to the installation of electrical systems, including alterations, repairs, replacement, equipment, appliances, fixtures, fittings and appurtenances thereto.

Section 104.6 Right of Entry. The last sentence is hereby amended as follows:

If entry is refused, or no person having charge or control over the building or premises can be located, the building official shall obtain a warrant from the Pitkin County Court authorizing the building official to make entry onto the building or premises.

Section 105.2 Building Item #7 is hereby amended to add the following sentence:

When such work is done as a standalone project and not associated with a required *Building Permit*.

Section 105.3.2 Time limitation of application is hereby amended as follows:

An application for a permit for any proposed work shall be deemed to have been abandoned one year after the intake acceptance date, unless such application has been pursued in good faith or a *permit* has been issued. The building official is not authorized to grant further extensions.

Section 105.5 Expiration is hereby amended as follows:

A building permit that has been issued shall become invalid if: 1) The work on the structure authorized by such permit is not commenced within 12 months after the date of permit issuance. Evidence of commencement shall be a building inspection of work performed on the structure itself and does not include such peripheral work as infrastructure, grading, access, excavation, etc. 2) The work authorized on the site by such permit is suspended or abandoned for a period of six months after the time the work is commenced. Continuation of work shall be evidenced by a required building inspection. Projects that are not ready for a required inspection shall request a progress inspection to document the performance of significant work in the judgment of the building official. The building official is not authorized to grant an extension.

Add Section 107.2.9 Improvement Survey.

The application shall also be accompanied by a survey that is certified by a surveyor registered in the State of Colorado, is no more than two years old, and that contains or indicates the following:

- a) Original wet stamp and signature of the surveyor,
- b) Standard industry language regarding accuracy of the survey,
- c) Property boundaries,
- d) All structures and buildings located on the site,
- e) Topography indicating two foot contour intervals,
- f) Natural water courses that traverse or are adjacent to the lot or parcel,
- g) Average high water mark for such natural water courses,
- h) 100 year Floodplain and/or delineated wetlands (where relevant),
- i) Lot or parcel size,
- j) Legal description,

- k) Location and dimensions of any easements and rights-of-way either contained on the parcel or adjacent to the parcel,
- l) All development envelopes approved through land use review,
- m) Trees within the building envelope that have a greater than 6 inch DBH,
- n) Location of existing well and/or septic system(s) (where applicable),
- o) Legible vicinity map, and
- p) Surveyor notes.

The above requirements shall not be mandatory for a building permit application to reconstruct or remodel totally within the limits of an existing building or structure.

Section 107.3.3 Phased Approval shall be deleted in its entirety.

109.1 Payment of fees is hereby amended as follows:

A permit shall not be valid until all fees prescribed by the most current Community Development fee ordinance are paid in full, nor shall an amendment to the permit be released until the additional fees, if any, have been paid. A final job cost audit shall be performed and any deficient permit fees shall be paid in full prior to a final Building Inspection.

109.3 Permit Valuations is hereby amended as follows:

A complete Schedule of Values must be submitted at permit application and prior to a final inspection for review. The Schedule of Values shall include the complete project cost including all final finish materials.

109.4 Work commencing before permit issuance is hereby amended and as follows: Any person who commences any work on a building, structure, electrical, gas, mechanical or plumbing system before obtaining the necessary permits shall be subject to an investigation fee, in addition to the permit fee, which may be collected whether or not the permit is subsequently issued. The minimum investigation fee in the first instance of violation shall be equal to the amount of the permit fee set forth in the most current adopted Community Development fee ordinance. The second and subsequent times an individual starts work without a permit the minimum fee shall be four times the permit fee.

109.6 Refunds is amended as follows:

The Building Official shall authorize the refund for the full amount of any fee paid which was erroneously paid or collected. Not more than 80% of a permit fee paid may be refunded when no work has been done under a permit issued in accordance with this code. The Building Official shall not authorize refunding any fee paid except on written application filed by the original permittee not later than six months after the date of payment.

Refunds may be approved for up to 100% of a fee paid for REMP. No refund will be approved when requested more than 180 days after the Final Building Inspection is approved.

Add **Section 109.7 Re-inspections** A re-inspection fee may be assessed when an inspection is called for and the work is not complete, required corrections are not made, field copy of approved plans is not readily available to the inspector, work is not accessible or for deviating from approved plans.

Section 110.3.12 Final Inspection is hereby amended as follows:

The final inspection shall be made after all work required by the building permit is completed and all applicable referral agencies (i.e., Zoning, Engineering, Fire District, Environmental Health, Water, Sanitation and Historic Preservation) involved in the permit review and issuance have inspected and approved specific permit conditions. It will be the contractor or owner's responsibility to contact the referral departments to arrange the final inspections for permit conditions.

111.3 Temporary Occupancy is hereby deleted in its entirety.

Section 113 Means of Appeals is hereby amended as follows:

113.1 General. In order to hear and decide appeals of orders, decisions or determinations made by the building official relative to the application and interpretation of this code, there shall be and is hereby created a board of appeals consisting of members who are qualified by experience and training to pass on matters pertaining to building construction and who are not employees of the jurisdiction. The building official shall be an ex officio member of and shall act as secretary to said board but shall have no vote on any matter before the board. The board of appeals shall be appointed by the governing body and shall hold office at its pleasure. The board shall adopt rules of procedure for conducting its business, and shall render all decisions and findings in writing to the appellant with a duplicate copy to the building official.

113.2 Limitations of Authority is hereby amended as follows

The board of appeals shall have no authority relative to interpretation of the administrative provisions of this code nor shall the board be empowered to waive requirements of this code.

Section 306 Factory Group F

306.2 F-1 add Marijuana and Cannabis Oil Products to the list of uses.

Section [F] 903.2 Where required is hereby amended as follows:

Approved automatic sprinkler systems in new buildings and structures shall be provided in the locations described in Section 903.2.1 through 903.2.12 and in all structures 3,000 square feet or greater in Aspen Fire Protection District and 5,000 sf in all others as defined by fire area. A fire wall, as defined in chapter 2, shall not create separate buildings for this purpose.

Add **Section 1504.10 Snow shed design.** Roofs shall be designed so that they do not shed ice and snow onto the main path of egress to the public way, upon the public way or upon neighboring property.

Exceptions:

- 1) Roofs with mechanical snow retention devices secured to roof framing members or to solid blocking in accordance to manufacturers' instructions or as designed by a licensed structural engineer.
- 2) Roof areas with a horizontal dimension of no more than 48 inches that will not receive snow shedding from a higher roof are exempt from the requirement of design by a licensed structural engineer. The horizontal projection shall be measured perpendicular to the exterior wall line from the edge of the roof or eave to any intersecting vertical surface.
- 3) The re-roofing of legally-existing roofs that are not framed to allow effective installation of snow retention devices is exempt from this requirement.
- 4) Roofs with asphalt shingle roof coverings with a pitch of 6 in 12 or less are exempt from this requirement.

1505.1 General is hereby amended as follows:

The minimum roof assemblies installed on buildings shall be Class A.

Table 1505.1 Minimum Roof Covering Classification for Types of Construction is hereby deleted in its entirety.

Add Section 1507.1.2 Ice barrier

An ice dam barrier that consists of at least two layers of underlayment cemented together or of a self-adhering polymer modified bitumen sheet shall be used in lieu of normal underlayment and shall extend from the roof eave edge at least four and one-half feet inside the exterior wall line as measured along the roof surface, twenty-four inches from the centerline of the valley and up twenty-four inches on the vertical wall at a roof and wall juncture.

Section 1608 Ground Snow Loads is hereby deleted and is replaced with the following:

The value of roof (or other member) snow load shall be equal to the "recommended basic snow load" as defined in the "2016 Snow Load Design Data for Colorado", prepared and published by the "Structural Engineers Association of Colorado".

Section 1612.3. Establishment of flood hazard areas. Insert: Pitkin County for [NAME OF JURISDICTION] and insert "June 4, 1987 or the latest study available" for [DATE OF ISSUANCE].

Section 1809.5 item #1 "Frost protection" is hereby amended as follows:

Frost protection depth shall be thirty-six (36) inches.

Add Section 2111.1.1 Fireplaces allowed.

The maximum number of fireplaces allowed shall be determined by the Pitkin County Code Section 6.12.030.

Add Section 3001.6 Permits required.

Elevator permits and inspections are required for the installation of elevators.

(Ord. 99-61 (part); Ord. 007-04 (part); prior code Title VII § 1-; chapter 11.04 repealed and reenacted Ord. 030-10; § 11.04 (part) Ord. 014-2016, 06-22-16)

11.08: INTERNATIONAL MECHANICAL CODE

11.08.010: ADOPTION OF THE 2021 INTERNATIONAL MECHANICAL CODE

11.08.010 of the Pitkin County code adopting the 2015 edition of the International Mechanical Code is hereby repealed and reenacted to read as follows:

Pursuant to the powers and authority conferred by the laws of the State of Colorado and Pitkin County, Colorado, there is hereby adopted and incorporated herein by reference as if fully set forth those regulations contained in by reference thereto, the International Mechanical Code, 2021 Edition, as published by the International Code Council, 4051 West Flossmoor Road, Country Club Hills, Illinois, 60478-5795, except as otherwise provided by amendment or deletion as contained herein.

11.08.020 Copies on file

The Pitkin County Building Division shall keep on file in its office in Aspen, Colorado, a full and complete copy of the 2021 International Mechanical Code, as adopted by this Article, and said copy shall be open to public inspection at all times during the regular business hours of said Division.

11.08.030 Severability

The provisions of this chapter are declared to be severable so that in the event any section or portion of any section hereof shall be declared by a court of competent jurisdiction to be unconstitutional, unlawful, or otherwise unenforceable, the remaining sections and provisions hereof not so found shall continue in full force and effect.

11.08.040 AMENDMENTS TO THE 2021 INTERNATIONAL MECHANICAL CODE

Section 101.1 Insert: Pitkin County for [NAME OF JURISDICTION]

Section 104.4 Right of Entry is hereby amended as follows:

The section shall remain as is except that the last sentence shall read:] If entry is refused, or no person having charge or control over the building or premises can be located, the building official shall obtain a warrant from Pitkin County Court authorizing the building official to make entry onto the building or premises.

Section 106.4.43 Expiration is hereby amended as follows:

Every permit issued shall become invalid unless the work on the site authorized by such permit is commenced within 12 months after its issuance, or if the work authorized on the site by such permit is suspended or abandoned for a period of 180 days after the time the work is commenced. The building official is not authorized to grant an extension.

Section 106.4.4 Extensions is hereby deleted.

Section 109.2 Schedule of permit fees is hereby amended as follows:

A permit shall not be valid until all fees prescribed by the most current Pitkin County Community Development fee ordinance are paid in full, nor shall an amendment to the permit be released until the additional fees, if any, have been paid

Section 109.6 Refunds. Is hereby amended as follows:

The building official shall be authorized to refund not more than 80 percent of the permit fee when work has not begun and not more than 80 percent of plan review fees for applications withdrawn, when plan review work has not begun.

Section 113 Means of Appeal is deleted in its entirety and amended as follows:

Section 113.1 Appeals shall be in accordance with IBC Section 113 as amended by this ordinance.

Section 306.3 Appliances in attics. Exception 2 is hereby amended in its entirety:

Where the passageway is unobstructed and not less than 5'6" high and 22" wide for its entire length, the passageway shall not be greater than 50 feet in length.

Section 306.4 Appliances under floors Exception 2 is hereby amended in its entirety:

Where the passageway is unobstructed and not less than 5'6" high and 22" wide for its entire length, the passageway shall not be limited in length.

Section 307.1 Fuel-burning appliances is hereby amended and the following sentence is added at the end of the paragraph:

All condensate shall be neutralized prior to discharge to the approved plumbing fixture or disposal area.

(Ord. 99-61 (part); Ord. 007-04 (part); prior code Title VII § 1-1; Chapter 11.08 repealed and reenacted Ord. 030.10; 11.08 (part) Ord. 014-2016, 06-22-16)

11.12: NATIONAL ELECTRICAL CODE AND ICC ELECTRICAL CODE ADMINISTRATIVE PROVISIONS

11.12.010: ADOPTION OF THE NATIONAL ELECTRICAL CODE

Section 11.12.010 of the Pitkin County code adopting the National Electrical Code is hereby repealed and reenacted to read as follows:

Pursuant to the power and authority conferred by the laws of the State of Colorado and Pitkin County, Colorado, there is hereby adopted and incorporated herein by reference as if fully set forth those regulations contained in by reference thereto, the National Electrical Code, most current edition, published by the National Fire Protection Association, Batterymarch Park, Quincy, Massachusetts, 02269.

11.12.020 Copies on file

The Pitkin County Building Division shall keep on file in its office in Aspen, Colorado, a full and complete copy of the The National Electrical code as adopted by the State of Colorado and by this article, and said copy shall be open to public inspection at all times during the regular business hours of said Division.

11.12.030 Severability

The provisions of this chapter are declared to be severable so that in the event any section or portion of any section hereof shall be declared by a court of competent jurisdiction to be unconstitutional, unlawful, or otherwise unenforceable, the remaining sections and provisions hereof not so found shall continue in full force and effect.

11.12.050: AMENDMENTS TO THE NATIONAL ELECTRIC CODE

690.10 Stand-Alone Systems is hereby amended as follows:

The premises wiring system shall be adequate to meet the requirements of this Code for a similar installation connected to a service. The wiring on the supply side of the building or structure disconnecting means shall comply with this Code except as modified by 690.10(A) through (D).

(A) Inverter Output. The ac output from a stand-alone inverter(s) shall be permitted to supply ac power to the building or structure disconnecting means at current levels less than the calculated load connected to that disconnect. The inverter output rating or the rating of an alternate energy source for dwellings less than 1000square feet shall be equal to or greater than 50% of the load as calculated by NEC 220.40 General.

The calculated load of a feeder or service shall not be less than the sum of the loads on the branch circuits supplied, as determined by Part II of this article, after any applicable demand factors permitted by Part III or IV or required by Part V have been applied.

For all other dwellings NEC 220.40 shall apply

For non-dwellings the calculated load shall be equal to or greater than the load posed by the largest single utilization equipment connected to the system.

(B) Sizing and Protection is not amended.

(C) Single 120-Volt Supply is not amended.

(D) Energy Storage or Backup Power System Requirements is amended and shall read as follows: Energy storage or backup power supplies are not required except for dwellings.

(E) Back-Fed Circuit Breakers is not amended.

(Ord. 99-61 (part); Ord. 007-04 (part); prior code Title VII § 1-1; chapter 11.12 repealed and replaced Ord. 030-10)

11.16: INTERNATIONAL PLUMBING CODE

11.16.010: ADOPTION OF THE 2021 INTERNATIONAL PLUMBING CODE

Section 11.16.010 of the Pitkin County code adopting the 2015 edition of the International Plumbing Code is hereby repealed and reenacted as follows:

Pursuant to the powers and authority conferred by the laws of the State of Colorado and Pitkin County, Colorado, there is hereby adopted and incorporated herein by reference as if fully set forth those regulations contained in by reference thereto, the International Plumbing Code, 2021 Edition, as published by the International Code Council, 4051 West Flossmoor Road, Country Club Hills, Illinois, 60478-5795, except as otherwise provided by amendment or deletion as contained herein.

11.16.020 Copies on file.

The Pitkin County Building Division shall keep on file in its office in Aspen, Colorado, a full and complete copy of the 2021 International Plumbing Code, as adopted by this Article, and said copy shall be open to public inspection at all times during the regular business hours of said Division.

11.16.030 Severability

The provisions of this chapter are declared to be severable so that in the event any section or portion of any section hereof shall be declared by a court of competent jurisdiction to be unconstitutional, unlawful, or otherwise unenforceable, the remaining sections and provisions hereof not so found shall continue in full force and effect.

11.16.040 AMENDMENTS TO THE 2021 INTERNATIONAL PLUMBING CODE

Section 101.1 Title. Insert: Pitkin County for [NAME OF JURISDICTION]

Section 104.4 Right of Entry is hereby amended as follows:

The section shall remain as is except that the last sentence shall read:] If entry is refused, or no person having charge or control over the building or premises can be located, the building official shall obtain a warrant from the Pitkin County Court authorizing the building official to make entry onto the building or premises.

Section 106.5.3 Expiration is hereby amended as follows:

Every permit issued shall become invalid unless the work on the site authorized by such permit is commenced within 12 months after its issuance, or if the work authorized on the site by such permit is suspended or abandoned for a period of 180 days after the time the work is commenced. The building official is not authorized to grant an extension.

Section 106.5.4 Extension is hereby deleted

Section 109.2 Schedule of permit fees is hereby amended as follows:

A permit shall not be valid until all fees prescribed by the most current Pitkin County Community Development fee ordinance are paid in full, nor shall an amendment to the permit be released until the additional fees, if any, have been paid.

Section 109.5 Refunds is hereby amended as follows: The building official shall be authorized to refund not more than 80 percent of the permit fee when work has not begun and not more than 80 percent of plan review fees for applications withdrawn, when plan review work has not begun.

Section 113 Means of Appeal is hereby amended as follows:

Section 113.1 Appeals shall be in accordance with IBC Section 113 as amended by this ordinance

Section 301.3 Connections to drainage system is hereby amended and the following exception added:

Exception 2: Floor drains located in garages shall be permitted to drain into a drywell.

Section 305.4.1 Sewer Depth. Insert 48 for [NUMBER].

Section 314.1 Fuel burning appliances is hereby amended and the following sentence is added at the end of the paragraph:

All condensate shall be neutralized prior to discharge to the approved plumbing fixture or disposal area

Add Section 606.7 Storage tanks in Crawl Spaces. Crawlspace containing large capacity storage tanks shall have emergency floor drains or some other means of catastrophic draining provided. Such drainage shall go to a drywell or to daylight.

Table 702.3 Building Sewer Pipe is amended to delete “Vitrified clay pipe” as an allowed material.

Section 9043.1 Roof Extension. Insert 12 for [NUMBER].

(Ord. 99-61 (part); Ord. 007-04 (part); prior code Title VII § 1-1; Chapter 11.16 repealed and reenacted Ord. 030-10 11.04 (part) §11.16 (part) Ord. 014-2016, 06-22-16)

11.20: INTERNATIONAL RESIDENTIAL CODE

11.20.010: ADOPTION OF THE 2021 INTERNATIONAL RESIDENTIAL CODE

Section 11.20.010 of the Pitkin County code adopting the 2015 edition of the International Residential Code is hereby repealed and reenacted as follows:

Pursuant to the powers and authority conferred by the laws of the State of Colorado and Pitkin County, Colorado, there is hereby adopted and incorporated herein by reference as if fully set forth those regulations contained in by reference thereto, the International Residential Code, 2021 Edition, including Appendices AE, AF, AH AK, and AQ as published by the International Code Council, 4051 West Flossmoor Road, Country Club Hills, Illinois, 60478-5795, except as otherwise provided by amendment or deletion as contained herein.

11.20.020 Copies on file.

The Pitkin County Building Division shall keep on file in its office in Aspen, Colorado, a full and complete copy of the 2021 International Residential Code as adopted by this Article, and said copies shall be open to public inspection at all times during the regular business hours of said Division.

11.20.030 Severability

The provisions of this chapter are declared to be severable so that in the event any section or portion of any section hereof shall be declared by a court of competent jurisdiction to be unconstitutional, unlawful, or otherwise unenforceable, the remaining sections and provisions hereof not so found shall continue in full force and effect.

11.20.040 AMENDMENTS TO THE 2021 INTERNATIONAL RESIDENTIAL CODE.

R101.1 Title. Insert Pitkin County for [NAME OF JURISDICTION].

Section R104.6 Right of Entry is hereby amended as follows:

The section shall remain as is except that the last sentence shall read:] If entry is refused, or no person having charge or control over the building or premises can be located, the building official shall obtain a warrant from the Pitkin County Court authorizing the building official to make entry onto the building or premises.

Section R105.2 Work exempt form permit is hereby amended as follows:

Add Item 6 Only when this work is performed as a standalone project and is not part of the scope of work for a permitted project.

Section R105.3.2 Time limitation of application is hereby amended as follows:

An application for a permit for any proposed work shall be deemed to have been abandoned one

year after the intake acceptance date, unless such application has been pursued in good faith or a *permit* has been issued. The building official is not authorized to grant further extensions.

Section R105.5 Expiration is hereby amended as follows:

A building permit that has been issued shall become invalid if: 1) The work on the structure authorized by such permit is not commenced within 12 months after the date of permit issuance. Evidence of commencement shall be a building inspection of work performed on the structure itself and does not include such peripheral work as infrastructure, grading, access, excavation, etc. 2) The work authorized on the site by such permit is suspended or abandoned for a period of six months after the time the work is commenced. Continuation of work shall be evidenced by a required building inspection. Projects that are not ready for a required inspection shall request a progress inspection to document the performance of significant work in the judgment of the building official. The building official is not authorized to grant an extension.

Add Section R106.2.1 Improvement Survey.

The application shall also be accompanied by a survey that is certified by a surveyor registered in the State of Colorado, is no more than two years old, and that contains or indicates the following:

- a) Original wet stamp and signature of the surveyor,
- b) Standard industry language regarding accuracy of the survey,
- c) Property boundaries,
- d) All structures and buildings located on the site,
- e) Topography indicating two foot contour intervals,
- f) Natural water courses that traverse or are adjacent to the lot or parcel,
- g) Average high water mark for such natural water courses,
- h) 100 year Floodplain and/or delineated wetlands (where relevant),
- i) Lot or parcel size,
- j) Legal description,
- k) Location and dimensions of any easements and rights-of-way either contained on the parcel or adjacent to the parcel,
- l) All development envelopes approved through land use review,
- m) Trees within the building envelope that have a greater than 6 inch DBH,
- n) Location of existing well and/or septic system(s) (where applicable),
- o) Legible vicinity map, and
- p) Surveyor notes.

The above requirements shall not be mandatory for a building permit application to reconstruct or remodel totally within the limits of an existing building or structure.

Section R106.3.3 Phased Approval is hereby deleted in its entirety.

Section R108.1 Payment of fees is hereby amended as follows:

A permit shall not be valid until all fees prescribed by the most current Pitkin County Community Development fee ordinance are paid in full, nor shall an amendment to the permit be released until the additional fees, if any, have been paid.

Section R108.3 Building Permit Valuations is hereby amended as follows:

A complete Schedule of Values must be submitted at permit application and prior to a final inspection for review and auditing purposes. The Schedule of Values shall include the complete project cost including all final finish materials.

Section R108.5 Refunds is hereby amended as follows:

The Building Official shall authorize the refund for the full amount of any fee paid which was erroneously paid or collected. Not more than 80% of a permit fee paid may be refunded when no work has been done under a permit issued in accordance with this code. The Building Official shall not authorize refunding any fee paid except on written application filed by the original permittee not later than six months after the date of payment.

Refunds may be approved for up to 100% of a fee paid for REMP. No refund will be approved when requested more than 180 days after the Final Building Inspection is approved

108.6 Work commencing before permit issuance is amended as follows:

Any person who commences any work on a building, structure, electrical, gas, mechanical or plumbing system before obtaining the necessary permits shall be subject to an investigation fee, in addition to the permit fee, which may be collected whether or not the permit is subsequently issued. The minimum investigation fee shall be equal to the amount of the permit fee set forth in the most current adopted Community Development fee ordinance. The second time and subsequent times an individual starts work without a permit the minimum fee shall be four times the permit fee.

Add Section R108.7. Reinspection Fees A reinspection fee may be assessed when an inspection is called for an the work is not complete, required corrections are not made, filed copy of approved plans are not readily available to the inspector, work is not accessible or for deviating from approved plans.

Section R109.1.6 Final Inspection is hereby amended as follows:

The final inspection shall be made after all work required by the building permit is completed and all applicable referral agencies have accepted the work to comply with conditions of approval and any specific regulations.

Add Section 110.1 Use and change of occupancy is hereby amended as follows:

Exception 2 shall be deleted.

Section R110.4 Temporary Occupancy is hereby deleted in its entirety.

Section R112 BOARD OF APPEALS is hereby amended as follows:

R112.1 General. In order to hear and decide appeals of orders, decisions or determinations made by the building official relative to the application and interpretation of this code, there shall be and is hereby created a board of appeals consisting of members who are qualified by experience and training to pass on matters pertaining to building construction and who are not employees of the jurisdiction. The building official shall be an ex officio member of and shall act as secretary to said board but shall have no vote on any matter before the board. The board of appeals shall be appointed by the governing body and shall hold office at its pleasure. The board shall adopt rules of procedure for conducting its business, and shall render all decisions and findings in writing to the appellant with a duplicate copy to the building official.

R112.2 Limitations of Authority is hereby amended and the last sentence shall read: The board of appeals shall have no authority relative to interpretation of the administrative provisions of this code nor shall the board be empowered to waive requirements of this code.

R202 Definitions. Habitable Space is hereby amended. The definition shall remain as written, with the following sentence appended to the end: Unfinished basements with a ceiling height of 80 inches or more are considered habitable space.

TABLE R301.2 CLIMATIC AND GEOGRAPHIC DESIGN CRITERIA

GROUND SNOW LOAD _s	WIND DESIGN				SEISMIC DESIGN CATEGORY	SUBJECT TO DAMAGE FROM			ICE BARRIER UNDERLAYMENT REQUIRED	FLOOD HAZARDS	AIR FREEZING INDEX	MEAN ANNUAL TEMP
	Speed(mph)	Topographic effects	Special wind region	Windborne debris zone		Weathering	Frost line depth	Termite				
Varies*	Varies**	NO	NO	NO	Varies***	Severe	36"	NO	YES 905.1.2	Latest Study	2000	40.8
MANUAL J DESIGN CRITERIA												
Elevation			Altitude correction factor	Coincident wet bulb	Indoor winter design dry- bulb temperature	Indoor winter design dry- bulb temperature			Outdoor winter design dry-bulb temperature		Heating temperature difference	
Site specific			Site specific	54 F	70 F	70 F			-16 F		96 F	
Latitude			Daily range	Indoor summer design relative humidity	Indoor winter design relative humidity	Indoor summer design dry- bulb temperature			Outdoor summer design dry- bulb temperature		Cooling temperature difference	
Site specific			High	50%	30%	75 F			82 F		7 F	

Table 301.2(1) shall read as follows:

*The value of roof (or other structural member) snow load shall be equal to the recommended basic snow load as defined in the 2016 Snow load Design Data for Colorado, prepared and published by the Structural Engineers Association of Colorado

**Engineered per ASCE 7-10 Standard

***As Verified on map(s) located in the 2021 International Residential Code

R302.13 Fire Protection of floors is hereby amended as follows:

Exception 2 is deleted in its entirety

R313.1 Townhouse automatic fire sprinkler systems is hereby amended as follows:

An automatic residential fire sprinkler system shall be installed in structures 3000 square feet in Aspen Fire Protection District and 5,000 sf in all others or greater in gross floor area as defined by the 2021 International Building Code or two (2) stories of more in height and containing four (4) or more dwelling units. A fire wall, as defined in chapter 2, shall not create separate buildings for this purpose.

R313.2 One- and two-family dwellings automatic fire sprinkler systems is hereby amended as follows:

An approved automatic fire-extinguishing system shall be installed in all structures 3000 square feet in Aspen Fire Protection District and 5,000 sf in all others or greater as defined by fire area. A fire wall, as defined in chapter 2, shall not create separate buildings for this purpose.

R315 Carbon monoxide alarms is hereby amended as follows:

R315.1 Carbon monoxide alarms. Carbon monoxide alarms shall be installed in new and existing buildings in compliance with the Pitkin County Carbon Monoxide Ordinance No. 039-2008.

Section R902.1 Roof covering materials is hereby amended as follows:

The second sentence is replaced with the following: The minimum roof assemblies installed on buildings shall be Class A. Third sentence amended to delete Class B and C.

Add Section R903.5 Snow shed design.

Roofs shall be designed so that they do not shed ice and snow onto the main path of egress to the public way, upon the public way or upon neighboring property.

Exceptions:

- 1) Roofs with mechanical snow retention devices secured to roof framing members or to solid blocking in accordance to manufacturers' instructions or as designed by a licensed structural engineer.
- 2) Roof areas with a horizontal dimension of no more than 48 inches that will not receive snow shedding from a higher roof are exempt from the requirement of design by a licensed structural engineer. The horizontal projection shall be measured perpendicular to the exterior wall line from the edge of the roof or eave to any intersecting vertical surface.
- 3) The re-roofing of legally-existing roofs that are not framed to allow effective installation of snow retention devices is exempt from this requirement.
- 4) Roofs with asphalt shingle roof coverings with a pitch of 6 in 12 or less are exempt from this requirement.

Section R905.1.2 Ice barrier is hereby amended as follows:

An ice dam barrier that consists of at least two layers of underlayment cemented together or of a self-adhering polymer modified bitumen sheet shall be used in lieu of normal underlayment and shall extend from the roof eave edge at least four and one-half feet inside the exterior wall line as measured along the roof surface, twenty-four inches from the centerline of the valley and up twenty-four inches on the vertical wall at a roof and wall juncture.

Add Section R1003.1.1 Fireplaces allowed. The maximum number of fireplaces allowed shall be determined by the Pitkin County Code Section 6.12.030.

Chapter 11 is deleted in its entirety and replaced with the following:

Chapter 11 Energy Efficiency The provisions of the 2021 International Energy Conservation Code shall apply to all matters governing the design and construction of buildings for energy efficiency.

M1305.1.2 Appliances in attics Exception 2 is hereby amended as follows:

Where the passageway is unobstructed and not less than 5' 6" high and 22" wide for its entire length, the passageway shall be not more than 50' long.

M1305.1.3 Appliances under floors Exception 2 is hereby amended as follows:

Where the passageway is unobstructed and not less than 5' 6" high and 22" wide for its entire length, the passageway shall not be limited in length.

Add M1307.8 Fuel-burning appliances

All condensate shall be neutralized prior to discharge to the approved plumbing fixture or disposal area.

Section G2406.2 Appliance location is amended as follows:

Exceptions 3 & 4 are hereby deleted.

Section G2420.5.1 Located within same room shall be amended as follows:

The shutoff valve shall be within 6 feet (1829 mm) of the appliance (including exterior appliances) and shall be installed upstream of the union, connector or quick disconnect device it serves. Such shutoff valves shall be provided with access. Shutoff valves serving movable appliances, such as cooking appliances and clothes dryers, shall be considered to be provided with access where installed behind such appliances. Appliance shutoff valves located in the firebox of a fireplace shall be installed in accordance with the appliance manufacturer's instructions.

G2420.5.2 Vented decorative appliances and room heaters is hereby deleted.

G2420.5.3 Located at manifold is hereby deleted.

Section G2425.8 is hereby amended as follows:

Item 7 is hereby deleted

Section G2445 Unvented room heaters is hereby amended as follows:

Unvented decorative room heaters are prohibited in Pitkin County and this section is hereby deleted in its entirety.

Section P2904.1 General is hereby amended as follows:

The design and installation of Residential Fire Sprinkler Systems shall be in accordance with NFPA13D or P2904, which will be considered equivalent to NFPA13D when reviewed, approved, installed and inspected to the approval of the Fire District having jurisdictional authority.

Section P3103.1.1 Roof Extension is hereby amended as follows:

Open vent pipes that extend through a roof that do not meet the condition of Section P3103.1.2 or P3103.1.3 shall terminate not less than 12 inches (300 mm) above the roof or 6 inches (300 mm) above the anticipated snow accumulation, whichever is greater

APPENDIX AQ TINY HOUSES is hereby amended as follows:

AQ106.1 Air leakage testing.

The air leakage rate for tiny houses shall not exceed 0.30 cubic feet per minute at 50 Pascals of pressure per square foot of the dwelling unit enclosure area. The air leakage testing shall be in accordance with the testing methods required in Section R402.4.1.2. The dwelling unit enclosure area shall be the sum of the areas of ceilings, floors and walls that separate the conditioned space of a dwelling unit from the exterior, its adjacent unconditioned spaces and adjacent dwelling units.

AQ106.2 Alternative compliance.

Tiny houses shall be deemed to be in compliance with Chapter R4 of the International Energy Conservation Code, provided that the following conditions are met:

- 1.The insulation and fenestration meet the requirements of Table R402.1.2.
- 2.The thermal envelope meets the requirements of Section R402.4.1.1 and Table R402.4.1.1
- 3.Solar, wind or other renewable energy source supplies not less than 90 percent of the energy use for the structure.
- 4.Solar, wind or other renewable energy source supplies not less than 90 percent of the energy for service water heating.
- 5.Permanently installed lighting is in accordance with Section R404.
- 6.Mechanical ventilation is provided in accordance with Section M1505 and operable fenestration is not used to meet ventilation requirements.

(Ord. 99-61 (part); Ord. 007-04 (part); prior code Title VII § 1-1; Chapter 11.20 repealed and reenacted Ord. 030-10; Amended (part) Ord. 025-2012; Amended (part) 014-16, 06-22-16)

11.24: INTERNATIONAL EXISTING BUILDING CODE

11.24.010: ADOPTION OF THE 2021 INTERNATIONAL EXISTING BUILDING CODE

Pursuant to the powers and authority conferred by the laws of the State of Colorado and Pitkin County, Colorado, there is hereby adopted and incorporated herein by reference as if fully set forth those regulations contained in by reference thereto, the International Existing Building Code, 2021 Edition, as published by the International Code Council, 4051 West Flossmoor Road, Country Club Hills, Illinois, 60478-5795, except as otherwise provided by amendment or deletion as contained herein. *(Ord. 99-61 (part); Ord. 007-04 (part); prior code Title VII § 1-1) Ord. 14-16 (part) Amended (part) 014-16, 06-22-16)*

11.24.020: COPIES ON FILE.

The Pitkin County Building Division shall keep on file in its office in Aspen, Colorado, a full and complete copy of the International Existing Building Code, 2021 edition, as adopted by this Article, and said copies shall be open to public inspection at all times during the regular business hours of said Division. *(Ord. 99-61 (part); Ord. 007-04 (part); prior code Title VII § 1-1) Amended (part) 014-16, 06-22-16)*

11.24.030: SEVERABILITY

The provisions of this chapter are declared to be severable so that in the event any section or portion of any section hereof shall be declared by a court of competent jurisdiction to be unconstitutional, unlawful, or otherwise unenforceable, the remaining sections and provisions hereof not so found shall continue in full force and effect. *(Ord. 99-61 (part); Ord. 007-04 (part); prior code Title VII § 1-1)*

11.24.040: AMENDMENTS TO THE 2021 EXISTING BUILDING CODE

Section 101.1 Title Insert: Pitkin County for [NAME OF JURISDICTION]

SECTION 103 CODE COMPLIANCE AGENCY is hereby amended as follows:

SECTION 103 DIVISION OF BUILDING SAFETY

Section 103.1 Creation of agency

The Division of Building Safety is hereby created and the official in charge thereof shall be known as the building official.

Section 104.6 Right of Entry is hereby amended as follows:

The section shall remain as is except that the last sentence shall read: If entry is refused, or no person having charge or control over the building or premises can be located, the building official shall obtain a warrant from the City of Aspen Municipal Court authorizing the building official to make entry onto the building or premises.

Section 105.3.2 Time limitation of application is hereby amended as follows:

An application for any proposed work shall be deemed to have been abandoned six 180 days after the date of filing, unless such application has been pursued in good faith or a permit has been issued. The building official is authorized to grant on extension not exceeding 180 days. The extension shall be requested in writing and justifiable cause demonstrated.

Section 105.5 Expiration is hereby amended as follows:

Every permit issued shall become invalid unless the work on the site authorized by such commenced within 12 months after its issuance, or if the work authorized on the site by such permit is suspended or abandoned for a period of 180 days after the time the work is commenced. The building official is not authorized to grant an extension.

Section 106.3.3 Phased Approval is hereby deleted in its entirety.

Section 110.3 Temporary Occupancy is hereby deleted in its entirety.

Section 112.1 Means of Appeals is hereby amended as follows:

112.1 General. In order to hear and decide appeals of orders, decisions or determinations made by the building official relative to the application and interpretation of this code, there shall be and is hereby created a board of appeals consisting of members who are qualified by experience and training to pass on matters pertaining to building construction and who are not employees of the jurisdiction. The building official shall be an ex officio member of and shall act as secretary to said board but shall have no vote on any matter before the board. The board of appeals shall be appointed by the governing body and shall hold office at its pleasure. The board shall adopt rules of procedure for conducting its business, and shall render all decisions and findings in writing to the appellant with a duplicate copy to the building official.

112.2 Limitations of Authority. The board of appeals shall have no authority relative to interpretation of the administrative provisions of this code nor shall the board be empowered to waive requirements of this code.

(Ord. 99-61 (part); Ord. 007-04 (part); prior code Title VII § 1-1)

11.28: INTERNATIONAL FUEL GAS CODE

11.28.010: ADOPTION OF THE 2021 INTERNATIONAL FUEL GAS CODE

Section 11.28.010 of the Pitkin County code adopting the 2015 edition of the International Fuel Gas Code is hereby repealed and reenacted to read as follows:

Pursuant to the powers and authority conferred by the laws of the State of Colorado and Pitkin County, Colorado, there is hereby adopted and incorporated herein by reference as if fully set forth those regulations contained in by reference thereto, the International Fuel Gas Code, 2021 Edition, as published by the International Code Council, 4051 West Flossmoor Road, Country Club Hills, Illinois, 60478-5795, except as otherwise provided by amendment or deletion as contained herein.

11.28.020 Copies on file

The Pitkin County Building Division shall keep on file in its office in Aspen, Colorado, a full and complete copy of the International Fuel Gas Code 2021 edition, as adopted by this Article, and said copies shall be open to public inspection at all times during the regular business hours of said Division.

11.28.030 Severability

The provisions of this chapter are declared to be severable so that in the event any section or portion of any section hereof shall be declared by a court of competent jurisdiction to be unconstitutional, unlawful, or otherwise unenforceable, the remaining sections and provisions hereof not so found shall continue in full force and effect.

11.28.040 AMENDMENTS TO THE 2021 INTERNATIONAL FUEL GAS CODE

Section 109.2 Schedule of permit fees is hereby amended as follows:

A permit shall not be valid until all fees prescribed by the most current Pitkin County Community Development fee ordinance are paid in full, nor shall an amendment to the permit be released until the additional fees, if any, have been paid.

Section 109.6 Refunds is hereby amended as follows:

The Building Official shall authorize the refund for the full amount of any fee paid which was erroneously paid or collected. Not more than 80% of a permit fee paid may be refunded when no work has been done under a permit issued in accordance with this code. The Building Official shall not authorize refunding any fee paid except on written application filed by the original permittee not later than six months after the date of payment.

Section 113 Means of Appeal is deleted in its entirety and is amended as follows:

Section 113.1 General Appeals shall be in accordance with IBC Section 113 as amended by this ordinance.

Add Section 303.3.2 Liquefied petroleum gas facilities and equipment.

Liquefied petroleum gas (LPG) gas facilities and equipment shall not be located in any pit or basement, under show windows or interior stairways, in engine, boiler, heater or electric meter rooms.

Exception: Equipment may be installed in such locations when an approved means of detection and removal of unburned LPG gas, consisting of an engineered mechanical exhaust system or other approved evacuation method designed by a Colorado-licensed mechanical engineer with a propane sensor and an automatic safety shut-off is provided.

Section 306.3 Appliances in attics. Exception 2 is hereby amended as follows:

Where the passageway is unobstructed and not less than 5' 6" high and 22" wide for its entire length, the passageway shall be not more than 50' long.

Section 306.4 Appliance under floors. Exception 2 is hereby amended as follows:

Where the passageway is unobstructed and not less than 5'6" high and 22" wide for its entire length, the passageway shall not be limited in length.

Section 409.5.1 Located within same room shall be amended as follows:

The shutoff valve shall be within 6 feet (1829 mm) of the appliance (including exterior appliances) and shall be installed upstream of the union, connector or quick disconnect device it serves. Such shutoff valves shall be provided with access. Shutoff valves serving movable appliances, such as cooking appliances and clothes dryers, shall be considered to be provided with access where installed behind such appliances. Appliance shutoff valves located in the firebox of a fireplace shall be installed in accordance with the appliance manufacturer's instructions.

Vented decorative appliances and room heaters is hereby deleted.

409.5.3 Located at manifold is hereby deleted.

Section 503.4.1.1 Plastic vent joints is hereby amended and the following shall be added to the end of the first sentence:
and shall be tested with water at a minimum 10' of head pressure or air at a minimum of 5 psi for 15 minutes.

Section 621 Unvented Room Heaters is hereby deleted in its entirety and amended as follows:

Section 621.1 General. Unvented room heaters and unvented decorative fuel burning appliances shall not be installed.

(Ord. 99-61 (part); Ord. 007-04 (part); prior code Title VII § 1-1; chapter 11.28 repealed and reenacted Ord. 030-10; amended (part) 014-16, 06-22-16)

11.32: INTERNATIONAL ENERGY CONSERVATION CODE

11.32.010: ADOPTION OF THE 2021 INTERNATIONAL ENERGY CONSERVATION CODE

Section 11.32.010 of the Pitkin County code adopting the 2015 edition of the International Energy Conservation Code is hereby repealed and reenacted to read as follows:

Pursuant to the powers and authority conferred by the laws of the State of Colorado and Pitkin County, Colorado, there is hereby adopted and incorporated herein by reference as if fully set forth those regulations contained in by reference thereto, the International Energy Conservation Code, 2021 Edition, as published by the International Code Council, 4051 West Flossmoor Road, Country Club Hills, Illinois, 60478-5795, except as otherwise provided by amendment or deletion as contained herein.

11.32.020 Copies on file

The Pitkin County Building Division shall keep on file in its office in Aspen, Colorado, a full and complete copy of the International Energy Conservation Code 2021 edition, as adopted by this Article, and said copies shall be open to public inspection at all times during the regular business hours of said Division.

11.32.030 Severability

The provisions of this chapter are declared to be severable so that in the event any section or portion of any section hereof shall be declared by a court of competent jurisdiction to be unconstitutional, unlawful, or otherwise unenforceable, the remaining sections and provisions hereof not so found shall continue in full force and effect.

11.32.040 AMENDMENTS TO THE 2021 INTERNATIONAL ENERGY CONSERVATION CODE

Section R101.1 Title Jurisdiction, Pitkin County

Section R104.1 Fees is hereby amended as follows:

A permit shall not be valid until all fees as prescribed in the Pitkin County Community Development Fee Ordinance that is in effect at the time of permit submittal are paid in full, nor shall an amendment to the permit be released until the additional fees, if any, have been paid.

Section R104.5 Refunds is hereby amended as follows:

The Building Official shall authorize the refund for the full amount of any fee paid which was erroneously paid or collected. Not more than 80% of a permit fee paid may be refunded when no work has been done under a permit issued in accordance with this code. The Building Official shall not authorize refunding any fee paid except on written application filed by the original permittee not later than six months after the date of payment.

Refunds may be approved for up to 100% of a fee paid for REMP. No refund will be approved more than six months after the Certificate of Occupancy is issued. A request for a refund must be submitted in the form of a change order if the building permit is in issued status or a new building permit application if the building permit is completed.

Add Section R105.2.6 Energy Rater Inspection. Upon completion of the required rough-in framing inspection and before the final approved insulation inspection, a certified energy rater must complete and approve an inspection for projects complying with R407. This inspection will aid the energy rater with final ERI compliance.

Section R110 Board of Appeals

Section R110.1 General is deleted in its entirety and is amended as follows:

Appeals shall be in accordance with Pitkin County Code Title 11, Chapter 11.04, Section R113.1.

Section R110 Liability is hereby amended as follows:

The Building Official or his authorized representative charged with the enforcement of this code, acting in good faith and without malice in the discharge of his duties, shall not thereby render himself personally liable for any damage that may accrue to persons or property as a result of any act or omission in the discharge of his duties.

This code shall not be construed to relieve or lessen the responsibility of any person owning, operating or controlling any building or structure for any damage to persons or property caused by defects on or in such premises, nor shall the code enforcement agency, any employee thereof, or Pitkin County be held as assuming any such responsibility or liability by reason of the adoption of this code or by the exercise of inspections authorized and carried out thereunder, or by the issuance of any permits or certificates issued pursuant to this code.

Section R301 Climate Zones shall be deleted in its entirety and is amended as follows:

Pitkin County, Colorado shall use Climate Zone 7 in determining the applicable requirements from Chapters 4 and 5.

Section R401.2.4 Tropical Climate Region Option. Shall be deleted in its entirety and is hereby amended as follows:

Section R401.2.4 Residential Building Provisions. All New Residential Dwelling Units shall comply with Section R407.

Section R402.1.2 Insulation and fenestration criteria. Shall be deleted in its entirety.

Table R402.1.3 Insulation Minimum R-Values and Fenestration Requirements by component is amended as follows:

Climate Zone	7
Vertical fenestration U-factor	0.27
Skylight U-factor	0.40
Glazed vertical fenestration SHGC	NR
Skylight SHGC	NR
Ceiling R-value	60
Insulation entirely above roof deck	35ci
Wood-framed wall R-value	30 or 20&5ci or 13&10ci or 0&20ci
Mass wall R-value	19/21
Floor R-value	38 or 19+10ci or 25ci
Basement wall R-value	15ci or 19 or 13&5ci
Unheated slab R-value & depth	10ci, 4 ft
Heated slab R-value & depth	10ci, 4 ft and R-5 full slab
Crawl space wall R-value	15ci or 19 or 13&5ci

NR = Not Required, ci = Continuous Insulation.

Section R402.2.12 Sunroom and heated garage insulation is hereby amended as follows:

Exceptions are hereby deleted

Section R402.3.5 Sunroom and heated garage fenestration is hereby amended as follows:

Exceptions are hereby deleted

Section R402.4.2 Fireplaces is hereby amended as follows:

New wood-burning fireplaces shall have gasketed flue dampers, gasketed doors and outdoor combustion air. Where using gasketed doors on factory-built fireplaces *listed* and *labeled* in accordance with UL 127, the doors shall be tested and *listed* for the fireplace. Masonry built fireplaces with automatic gas log lighters shall be required to install electronic flue sentinels.

Section R402.4.5 Recessed lighting is hereby amended and the following sentence added:

Recessed luminaires must be of the shallow depth configuration and a minimum of 50% of the required insulation R-value must remain in place above the luminaire including any required separation or air space.

Add Section R403.2.1 Mechanical systems and service water-heating systems commissioning and completion requirements. Prior to the final mechanical and plumbing inspections, the registered design professional or approved agency shall provide evidence of mechanical systems test and balance and commissioning in accordance with the provisions of section C408. The exceptions in C408.2 are hereby deleted.

Exceptions: The following systems are exempt:

1. Mechanical systems that only have one heating and/or cooling appliance working in concert
2. Stand Alone Mini-split systems
3. Single Family Residences 3,250 sf floor area and under
4. Multifamily individual dwelling units

Section R403.7 Equipment sizing and efficiency rating is hereby amended as follows:

Heating and cooling equipment shall be sized in accordance with ACCA Manual S based on building loads calculated in accordance with ACCA Manual J or other approved heating and cooling calculation methodologies. New or replacement heating and cooling equipment shall have an efficiency rating equal to or greater than the minimum required by federal law for the geographic location where the equipment is installed. Construction documents for mechanical systems that require test and balance and commissioning in R403.2.1 shall be prepared by a registered design professional. Gas fired furnaces and boilers shall meet a minimum 95% AFUE.

Section R407 Tropical Climate Region Compliance shall be deleted in its entirety and is hereby amended as follows:

Add Section R407 Residential Dwelling Unit Provisions

Add Section R407.1 Compliance. Existing residential buildings shall comply with Chapter 5. New Residential Dwelling Units shall comply with sections 402, 403, 404 and 407. All new dwelling units will be categorized into “Tiers” by floor area as defined in Chapter 5 of the Pitkin County Land Use Code.

Exception: This section does not apply to residential accessory structures

Add Section R407.2 Energy Rating Index Score. Compliance with this section requires that the rated design be shown to have a score less than or equal to the values in Table 407.2. The Energy Rating Index (ERI) shall be determined in accordance with ANSI/RESNET/ICC 301.

Add Table R407.2

Fuel Type	Energy Rating Index	Tier 1- 0-3,250 SF homes	Tier 2- 3,251-5,750 SF homes	Tier 3- 5,751- 9,250 SF homes
All-Electric (a)	Pre Renewable Energy/ Post renewable score (b)	50 (c)(d)	50/15	50/0
Fossil fuel/ hybrid (e)	Pre Renewable Energy/ Post renewable score (b)	50/15	50/15	50/0

- (a) All-Electric homes not installing exterior energy uses captured in Section R409 Renewable Energy Mitigation Program (REMP) will receive exemption for 5,000 watts of heat tape and 1 pre-packaged electric spa
- (b) Energy Storage Required per 407.3 for all renewable energy systems
- (c) In order for Tier 1 homes to be exempt from the post renewable energy score they must not install exterior energy uses captured in Section R409 Renewable Energy Mitigation Program (REMP).
- (d) Off-grid homes of any tier fed exclusively by renewable energy shall only be required to meet the baseline ERI 50
- (e) Off-grid homes relying on fossil fuel for electricity generation

Add Section R407.2.1 Off-site Renewable Energy Production. Where a specific site's renewable energy production is significantly reduced due to site constraints, a hardship may be presented to the Chief Building Official proposing approval of off-site power production. This hardship shall not apply to projects enrolled in the REMP program. Off-site power production shall be one of the following options:

- 1. COMMUNITY RENEWABLE ENERGY FACILITY (CREF).** A facility that produces energy from *renewable energy resources* and that is qualified as a community energy facility under applicable jurisdictional statutes and rules.
- 2. FINANCIAL RENEWABLE ENERGY POWER PURCHASE AGREEMENT (FPPA).** A financial arrangement between a renewable electricity generator and a purchaser wherein the purchaser pays or guarantees a price to the generator for the project's renewable generation. Also known as a financial power purchase agreement and virtual power purchase agreement.
- 3. PHYSICAL RENEWABLE ENERGY POWER PURCHASE AGREEMENT (PPPA).** A contract for the purchase of renewable electricity from a specific renewable electricity generator by a purchaser of renewable electricity.

Add Section 407.3 Electric Energy Storage Provisions. All Photovoltaic systems installed shall include an energy storage system with a minimum rated energy capacity of 5 kWh OR 25% of the PV system's daily output as calculated using NREL's (National Renewable Energy Laboratory) PV Watts Calculator, whichever is greater. The Battery Storage System shall be installed via one of the following operational methods:

1. **DIRECT CONTROL UTILITY PROGRAM.** A program allowing the utility provider to manage the battery energy storage system (BESS) by controlling its charging or discharging.
2. **SELF-CONSUMPTION.** An operational mode where excess energy generated by on-site renewable systems is stored in the battery for later use, rather than being sent back to the grid.
3. **TIME-BASED OPERATION.** A mode in which the BESS discharges energy to the building during high-rate billing periods and recharges from the grid during lower-rate billing periods.

Add Section R409 Renewable Energy Mitigation Program (REMP)

Section R409.1 Scope. This section establishes criteria for compliance with the Renewable Energy Mitigation Program (REMP). Compliance with this section will be documented via the free Public Domain tool "Pitkin County REMF Calculation Sheet" in the most current version at the time of permit application. This tool is available at www.pitkincounty.com. Projected energy use, associated energy offset required, fees and credits are defined within this tool.

Section R409.2 Compliance. Compliance with this section requires that the provisions identified in Section R409 be followed for all residential projects seeking to install exterior energy uses.

Section R409.3 Exterior Energy Uses. Residential exterior energy uses (per list below) may be installed only if the supplemental energy meets the requirements of Section R409. This applies to all installations for which an application for a permit or renewal of an existing permit is filed or is by law required to be filed with or without an associated Building Permit.

1. In-Slab Snowmelt
2. Outdoor Electric Heat Mats
3. Outdoor Spa
4. Outdoor Pool
5. Heat Tape
6. Outdoor Electric Heaters
7. Outdoor Gas Fireplaces and Fire pits

Section R409.4 Exterior Energy Use Budget. The total aggregate annual energy use of all exterior energy uses listed in Section R409.3 shall be limited to 200,000,000 BTU/yr per parcel. This energy use may be distributed among the types of regulated energy uses at the discretion of the applicant. There are no exemptions to the Exterior Energy Budget.

Exception: Where a specific external energy use is demonstrated to be necessary to mitigate a life/safety concern, the Chief Building Official may waive the REMP payment for that specific use. The specific use will be calculated in the Exterior Energy Budget.

Section R409.5 Onsite Renewable Credits. Credits for renewable energy production will be calculated and applied per “Pitkin County REMP Calculation Sheet” for energy generated onsite. Renewable energy methods listed in the calculator include:

1. GSHP (Ground Source Heat Pump)
2. ASHP (Air Source Heat Pump)
3. SHW (Solar Hot Water)
4. PV (to be installed on site)
5. Alternative Renewable Energy Source

Section R409.6 Snowmelt Systems Requirements.

1. Snowmelt systems must be insulated with a minimum R-15
2. Required snowmelt controls. All systems are required to have automated controls to limit operation to when moisture is present, outdoor air temperature is below 40F and above 20F, and the slab temperature sensing. Idling of residential slabs is not allowed, but is allowed in commercial projects where public safety is a factor.
3. Snowmelt heating appliances will have a minimum efficiency of 95% AFUE. Electric resistance and heat pump heaters will be allowed. Where condensing boilers are used, the boiler supply water temperature shall be a maximum of 130F to allow for efficient boiler operation.

Section R409.7 Exterior Pool Requirements

1. Pool Covers are required for all pools, insulated with a minimum R-2.
2. Pool heating appliances will have a minimum efficiency of 95% AFUE. Electric resistance and heat pump heaters will be allowed. Where condensing boilers are used, the boiler supply water temperature shall be a maximum of 130F to allow for efficient boiler operation.

Section R409.8 Exterior Spa Requirements

1. Spa Covers are required for all spas, insulated with a minimum R-12.
2. Spa heating appliances will have a minimum efficiency of 95% AFUE. Electric resistance and heat pump heaters will be allowed. Where condensing boilers are used, the boiler supply water temperature shall be a maximum of 130F to allow for efficient boiler operation.

Section R409.9 Electric Heat Tape Controls. Electric roof and gutter deicing systems shall include automatic controls capable of shutting off the system when outdoor temperature is above 40 degrees F and when moisture is present.

Section R409.10 Hydronic Roof and Gutter Deicing Systems. These systems shall be considered snowmelt systems and shall comply with Section R409

Exception: REMP shall not apply to roof covering replacement or repair of existing buildings as long as exterior energy use is not increased.

Section R409.11 REMP Fee Payment. No refund of fee payment shall be made to an applicant for installation of renewable energy production that exceeds the on-site renewable credits required pursuant to Section 409. All monies collected pursuant to this section shall be recorded in a separate fund and shall be spent in accordance with a resolution by the Pitkin County Board of County Commissioners. The proceeds of this fee will be used to reduce fossil fuel generated energy consumption in other improvements in Pitkin County, to administer the International Energy Conservation Code provisions adopted into the Pitkin County Code, to educate the development industry and the public at large of the methods of energy efficient construction practices and the benefits of energy conservation and to achieve the goals of the Pitkin County Climate Action Plan.

Section R409.12 Pre-Existing Systems. Pre-existing systems, for which a prior REMP fee was paid, regulated by the scope of this section sought to be replaced by an Applicant, shall receive a pro-rated credit calculated as a fraction of the number of years since prior REMP payment for the system divided by 20 years. For example, a REMP payment made for a system permitted 10 years prior to the current replacement permit submittal would receive credit for $\frac{1}{2}$ of the prior REMP payment and that amount shall be deducted from REMP payment owed for replacement system. For renewable systems installed on site, full credit will be given for up to 20 years after the date of installation. Credits will only be applied to properly permitted and functioning systems within the scope of the adopted Energy Code and applicable Mechanical and Electrical Codes. Systems installed prior to 20 years before the date of permit application are not eligible for pro-ration of system credits. Upgrades to existing mechanical equipment (boilers, heat pumps, HVAC equipment, etc.) or renewables energy systems will not require a re-submittal to the application program. However, additions to or replacement of exterior energy uses (as listed above in Section R409.3), or additions of 1,000ft² or more will require re-submittal of the appropriate REMP compliance documents.

Section R409.13 Solar Photovoltaic Systems. System designer/installer must be certified by COSEIA (Colorado Solar Energy Industries Association) or NABCEP, (North American Board of Certified Energy Practitioners), or a licensed Professional Engineer in the State of Colorado.

Section R409.14 Solar Hot Water. The size of solar hot water systems is limited to 500 square feet of collector area absent approval by the Building Official. Systems larger than this limit will be considered, but will require documentation showing year-round utilization of this larger system.

Section R409.15 Ground Source Heat Pump (GSHP). Each ground source heat pump system shall be tested and balanced and commissioned in accordance with C408. The design engineer shall certify in writing that it meets or exceeds the design coefficient of performance (COP) as specified in the "Pitkin County REMP Calculation Sheet". The ground loop system must be designed by a CGD (Certified Geo Exchange Designer certified by the Association of Energy Engineers) or a Professional Engineer licensed in the State of Colorado or an IGSHPA (International Ground Source Heat Pump Association) certified designer. The mechanical system must be installed by a certified IGSHPA contractor.

Section R409.16 Air Source Heat Pump (ASHP). Each air source heat pump system shall be tested and balanced and commissioned in accordance with C408. The design engineer shall certify in writing that it meets or exceeds the design coefficient of performance (COP) as specified in the "Pitkin County REMP Calculation Sheet."

Section R409.17 Energy Consumption Aggregated Information. The Building Official seeks to track the progress of the program through submitted energy bills or information regarding residential energy use from other sources. To assist with this program-wide measurement, Applicant is requested provide completed release forms for applicable Utility Providers (electric and gas for properties which have both services). Energy consumption information will be used to monitor program success on an aggregated basis, and not for distribution with property identifying markers attached.

Section R409.18 Appeals. An Applicant may appeal the application of these Code provisions, Section R409.3, Exterior Energy Use to the Board of Appeals consistent with CRS 30-28-206 and 207, as amended, Title 11 of the Pitkin County Code and the Pitkin County Home Rule Charter causes substantial detriment to the public good and will not substantially impair the intent and purpose of the Pitkin County Code Title 11. Applicant may appeal any denial under this section to the Board of County Commissioners.

Section R502.3.1 Building envelope is amended as follows:

New building envelope assemblies that are part of the addition shall comply with Section R402. Additions of 500 square feet or more of floor area shall be divided into two categories and include the following additional requirements:

Tier 1 dwellings (0-3,250 sf, existing + new): shall be required to conduct a pre-construction Home Energy Assessment by a certified third party on the existing building. A comprehensive report of the assessment shall be submitted with the building permit application and include the following criteria:

1. Annual Energy Consumption
2. Existing Building Envelope Air Leakage Test
3. Recommended Building Envelope Upgrades
4. Recommended HVAC Upgrades
5. Recommended Water Heating Upgrades
6. Recommended Health and Safety Upgrades
7. Recommended Lighting and Appliance Upgrades

A post-construction Air Leakage Test shall be performed on the existing building and addition prior to Final Building Inspection demonstrating a 15% reduction in air leakage.

Tier 2 dwellings (3,251 sf and above, existing + new): shall be required to conduct a pre-construction Energy Rating Index Assessment performed in accordance with ANSI/RESNET/ICC 301, on the existing dwelling, as well as a projected rating including the addition to document any level of improvements made and to ensure that the home does not perform worse than it did prior to the addition in accordance with Section R502.1. In addition to the Energy Rating Index, a comprehensive report of the assessment shall be submitted with the building permit application and include the same criteria as in Tier 1. A post construction assessment shall be submitted prior to Final Building Inspection to demonstrate compliance. A post-construction Air Leakage Test shall be performed on the existing building and addition prior to Final Building Inspection demonstrating a 15% reduction in air leakage.

Exception: New envelope assemblies in additions less than 500 square feet in area are exempt from the requirements of Section R402.4.1.2, R402.4.1.3.

Section R503.1.1 Building envelope is hereby amended as follows:

Building envelope assemblies that are part of the alteration shall comply with Section R402. Alterations of 500 square feet or more of floor area shall be divided into two categories and include the following additional requirements:

Tier 1 dwellings (0-3,250 sf): shall be required to conduct a pre-construction Home Energy Assessment by a certified third party on the existing building. A comprehensive report of the assessment shall be submitted with the building permit application and include the following criteria:

1. Annual Energy Consumption
2. Existing Building Envelope Air Leakage Test
3. Recommended Building Envelope Upgrades
4. Recommended HVAC Upgrades
5. Recommended Water Heating Upgrades
6. Recommended Health and Safety Upgrades
7. Recommended Lighting and Appliance Upgrades

A post-construction Air Leakage Test shall be performed on the existing building and alteration prior to Final Building Inspection demonstrating a 15% reduction in air leakage.

Tier 2 dwellings (3,251 sf and above): shall be required to conduct a pre-construction Energy Rating Index Assessment performed in accordance with ANSI/RESNET/ICC 301, on the existing dwelling, as well as a projected rating including the alteration to document any level of improvements made and to ensure that the home does not perform worse than it did prior to the proposed alteration in accordance with Section R503.1. In addition to the Energy Rating Index, a comprehensive report of the assessment shall be submitted with the building permit application and include the same criteria as in Tier 1. A post construction assessment shall be submitted prior to Final Building Inspection to demonstrate compliance. A post-construction Air Leakage Test shall be performed on the existing building and addition prior to Final Building Inspection demonstrating a 15% reduction in air leakage.

Exception: Alterations defined below shall not be required to comply with the required assessments of this section provided that the energy use of the building is not increased.

1. The removal and replacement or the covering of existing materials, elements, equipment or fixtures using new materials, elements, equipment or fixtures that serve the same purpose.
2. The addition or elimination of any door or window, the reconfiguration or extension of any system, or the installation of any additional equipment, and shall apply where the work area is less than 500 sf floor area.
3. Alterations exposing or demolishing more than 75% of the building's thermal envelope area shall comply with the energy requirements of Section R407

Section R503.1.1.1 Replacement Fenestration is hereby amended and the following sentence added:

Where all the siding and windows are replaced on one or more sides of a structure, the building envelope shall comply with table 402.1.3. To determine the quantity of continuous insulation, the applicant must demonstrate the R value of the existing cavity insulation.

Add Section C409 Commercial Renewable Energy Mitigation Program (CREMP)

Section C409.1 Scope. This section establishes criteria for compliance with the Renewable Energy Mitigation Program. Compliance with this section will be documented via the free Public Domain tool “Pitkin County REMP Calculation Sheet” in the most current version at the time of permit application. This tool is available at www.pitkincounty.com. Projected energy use, associated energy offset required, fees and credits are defined within this tool.

Section C409. 2 Compliance. Compliance with this section requires that the provisions identified in Section R409 be followed for all commercial projects seeking to install exterior energy uses.

Section C409.3 Snowmelt life safety exemptions. Local, State and Federal Government Buildings and Structures may be exempted from mitigation payments and offsets defined previously in this code for a percentage of the requested snowmelt when there is a demonstrated risk to public safety related to snow and ice removal. The following items and any related documentation will be reviewed and evaluated to determine the potential exemption. A percentage of exempted area will be determined and any remaining requested snowmelt will need to be paid for or mitigated in the typical format. Upon recommendation by the Chief Building Official, a formal request will be compiled by the Applicant and presented to the Board of County Commissioners for final approval at a regularly scheduled meeting.

An application for review and approval would include the following:

1. Demonstration and declaration that typical mitigation methods were researched and proven not feasible.
- 2.
3. Demonstration that the public service being provided by the entity applying offsets the energy consumption being requested in this application including any cumulative offset exemption requests for REMP mitigation.
(i.e.: Bus Service vs. Vehicle Traffic)
4. Demonstration of safety risk to the General Public if exterior snowmelt is not installed including:
 - a. Providing the ratio of total paved area vs. snowmelted pavement;
 - b. Illustrating that the project minimizes the total amount of exterior energy used; and
 - c. The installation of snowmelt only in critical public safety areas.
5. Demonstration that BTU's saved through other means (existing equipment upgrades, envelope improvements, or other energy saving measures) translate to mitigation BTU's for snowmelt credit. Examples include:
 - a. Hybrids
 - b. Wind Power
 - c. Hydro-Electric

- d. Waste Oil Boilers
 - e. Pellet Boilers
6. Demonstration that offsite mitigation alternatives have been considered at other offsite locations within Pitkin County for the installation of typical mitigation methods.
- a. Typical Ground Source Heat Pump, Solar, or Photovoltaic methods that are not feasible on site could be installed at a more feasible location.
7. Other creative or innovative alternatives proposed by the applicant.

Upon review and recommendation by the Chief Building Official, areas associated with these buildings or structures that are critical to pedestrian ingress, egress, or life safety may, at the discretion of the Board of County Commissioners, be exempted from REMP payments for all or a portion of the area snow melted.

APPENDIX RB, 2021 International Energy Conservation Code

Appendix RB is adopted in its entirety and the provisions will be applied to New Construction, Alterations and Remodels that are not required to install a complete renewable energy system as indicated by other sections of this code.

Ord. 99-61 (part); prior code Title VII § 9-4); Chapter 11.32 repealed/replaced Ord. 01-10; Chapter 11.32 amended (part) Ord. 030-10) Chapter 11.32 amended (part) Ord. 016-13; Chapter 11.32 repealed and reenacted Ord. 016-2020,

11.34 ELECTRIC READY PROVISIONS

Chapter 1 Scope and Administration

SECTION 101 SCOPE AND GENERAL REQUIREMENTS.

101.1 Title. This code shall be known as the Electric Ready Code of Pitkin County, and shall be cited as such. It is referred to herein as “this code”.

101.2 Scope. This code applies to all buildings and dwelling units, and the buildings’ sites and associated systems and equipment.

101.3 Intent. This code shall regulate the design and construction of buildings to prepare new buildings for electric vehicle charging infrastructure, and electrification of building systems. This code is intended to provide flexibility and balance upfront construction costs with the future cost to retrofit buildings to accommodate these systems. This code is not intended to abridge safety, health or environmental requirements contained in other applicable codes or ordinances.

101.4. Applicability. Where, in any specific case, different sections of this code specify different materials, methods of construction or other requirements, the most restrictive shall govern. Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall govern.

101.4.1 Residential Buildings. Residential buildings must comply with the Residential Chapters of this code.

101.4.2 Commercial Buildings. Commercial buildings must comply with the Commercial Chapters of this code.

SECTION 102 WAIVER AND VARIANCE.

102.1 Scope. The following waivers shall be permitted to be requested if buildings meet the following requirements.

102.1.2 Buildings Impacted by a Natural Disaster. Pitkin County is permitted to authorize, upon appeal in specific cases, a waiver from the requirements of this code where, owing to a declared natural disaster that has destroyed buildings or resulted in other exceptional and extraordinary circumstances as determined by Pitkin County, and Pitkin County determines enforcement of the provisions of this code will result in unnecessary hardship.

SECTION 103 CONSTRUCTION DOCUMENTS.

103.1 General. Construction documents and other supporting data shall be submitted in one or more sets, or in a digital format where allowed by the code official, with each application for a permit. The construction documents shall be prepared by a registered design professional where required by the statutes of the jurisdiction in which the project is to be constructed. Where special conditions exist, the code official is authorized to require necessary construction documents to be prepared by a registered design professional.

Exception: The code official is authorized to waive the requirements for construction documents or other supporting data if the code official determines they are not necessary to confirm compliance with this code.

103.2 Information on Construction Documents. Construction documents shall be drawn to scale on suitable material. Electronic media documents are permitted to be submitted where approved by the code official. Construction documents shall be of sufficient clarity to indicate the location, nature, and extent of the work proposed, and show in sufficient detail pertinent data and features of the building, systems, and equipment as herein governed. Details shall include, but are not limited to, the following as applicable:

Electric Ready Combustion Equipment:

1. Location and sizing of all proposed combustion equipment in BTU/hr.
2. Location and sizing of future electric equipment and demonstrated BTU/hr equivalency. Where heat pumps are used, heating capacity at design outdoor and indoor conditions is to be used.
3. Location of electrical receptacle/junction box showing compliance with RE302.5 Adjacency. Adequate physical space for equipment should be indicated on plans.
4. Location routing of electric ready conduit/circuitry to the dedicated electrical panel.
5. Engineered Load Calculation showing electrical service is sized with sufficient capacity to meet the electrical demand of the future electric equipment or appliance that is sized to serve a comparable capacity to meet the heating load.

Exception: Engineered calculation is not required for services that will not exceed 400 amps

Electric Vehicle Equipment:

6. Number and location of EV capable light spaces.
7. Number and location of EV capable spaces.
8. Number and location of EV ready spaces.
9. Number and location of EVSE installed spaces.
10. Locations of conduit and termination points serving the aforementioned parking spaces.

103.3 Examination of Documents. The code official shall examine or cause to be examined the accompanying documents and shall ascertain whether the construction indicated and described is in accordance with the requirements of this code and other pertinent laws or ordinances. The code official is authorized to utilize a registered design professional, or other approved entity not affiliated with the building design or construction, in conducting the review of the plans and specifications for compliance with the code.

103.3.1 Approval of Construction Documents. When the code official issues a permit where construction documents are required, the construction documents shall be endorsed in writing and stamped "Reviewed for Code Compliance". Such approved construction documents shall not be changed, modified, or altered without authorization from the code official. Work shall be

done in accordance with the approved construction documents. One set of "Reviewed for Code Compliance" construction documents shall be retained by the code official. The other set shall be returned to the applicant, kept at the site of work, and shall be open to inspection by the code official or a duly authorized representative.

103.3.2 Previous Approvals. This code shall not require changes in the construction documents, construction, or designated occupancy of a structure for which a lawful permit has been heretofore issued or otherwise lawfully authorized, and the construction of which has been pursued in good faith within 180 days after the effective date of this code and has not been abandoned; except that the code official is authorized to grant one or more extensions of time for additional periods not exceeding 180 days each.

103.4 Amended Construction Documents. Changes made during construction that are not in compliance with the approved construction documents shall be resubmitted for approval as an amended set of construction documents by an approved change order building permit application.

103.5 Retention of Construction Documents. One set of approved construction documents shall be retained by the code official for a period of not less than 180 days from the date of completion of the permitted work, or as required by state or local laws.

103.6 Building Documentation and Closeout Submittal Requirements. The construction documents shall specify that the documents described in this section be provided to the building owner or owner's authorized agent within 90 days of the date of receipt of the certificate of occupancy.

Exception: Residential buildings.

103.6.1 Record Documents. Construction documents shall be updated to convey a record of the completed work. Such updates shall include mechanical, electrical, and control drawings that indicate all changes to size, type, and location of components, equipment, and assemblies.

103.6.2 Compliance Documentation. Compliance documentation and supporting calculations shall be delivered in one document to the building owner as a part of the project record documents or manuals, or as a standalone document. This document shall include the specific energy code edition utilized for compliance determination for each system.

SECTION 104 INSPECTIONS.

104.1 General. Construction or work for which a permit is required shall be subject to inspection by the code official, his or her designated agent or an approved agency, and such construction or work shall remain visible and able to be accessed for inspection purposes until approved. Approval as a result of an inspection shall not be construed to be an approval of a violation of the provisions of this code or of other ordinances of the jurisdiction. Inspections presuming to give authority to violate or cancel the provisions of this code or of other ordinances of the jurisdiction shall not be valid. It shall be the duty of the permit applicant to cause the work to remain visible

and/or able to be accessed for inspection purposes. Neither the code official nor the jurisdiction shall be liable for expenses entailed in the removal or replacement of any material, product, system or building component required to allow an inspection to validate compliance with this code.

104.2 Required Inspections. The code official, his or her designated agent or an approved agency, upon notification, shall make the inspections set forth in Sections 104.2.1 through 104.2.3.

104.2.1 Electric Ready. Inspections shall verify all of the following as required by this code, approved plans, and specifications:

1. Branch circuits, conduit and/or raceway, wiring, junction boxes, and receptacles for future electric equipment or appliances are properly labeled and installed, as applicable.
2. Reserved physical space for future electric equipment or appliances.
3. Electrical capacity and reserved physical space for circuit breakers in the main electrical service panel are properly labeled.

104.2.2 Electric Vehicle Ready. Inspections shall verify all of the following as required by this code, approved plans, and specifications:

1. EV power transfer infrastructure requirements.
2. Electrical equipment associated with each parking space type, including branch circuits, conduit and/or raceway, junction boxes, receptacles, and EVSE are properly labeled and installed.
3. Electrical capacity and reserved physical space for circuit breakers in the main electrical service panel are properly labeled, if applicable.

104.2.3 Final Inspection. The final inspection shall include verification of the installation and proper labeling of all requirements of this code.

104.3 Reinspection. A building shall be reinspected where determined necessary by the code official.

104.4 Approved Inspection Agencies. The code official is authorized to accept reports of third-party inspection agencies not affiliated with the building design or construction, provided that such agencies are approved as to qualifications and reliability relevant to the building components and systems that they are inspecting.

104.5 Inspection Requests. It shall be the duty of the holder of the permit or their duly authorized agent to notify the code official when work is ready for inspection. It shall be the duty of the permit holder to provide access to and means for inspections of such work that are required by this code.

104.6 Reinspection and Testing. Where any work or installation does not pass an initial test or inspection, the necessary corrections shall be made to achieve compliance with this code. The work or installation shall then be resubmitted to the code official for inspection and testing.

SECTION 105 NOTICE OF APPROVAL.

105.1 Approval. After the prescribed inspections indicate that the work complies in all respects with this code, a notice of approval shall be issued by the code official.

105.2 Revocation. The code official is authorized to suspend or revoke, in writing, a notice of approval issued under the provisions of this code wherever the certificate is issued in error, or on the basis of incorrect information supplied, or where it is determined that the building or structure, premise, or portion thereof is in violation of any ordinance or regulation or any of the provisions of this code.

SECTION 106 VALIDITY.

106.1 General. If a portion of this code is held to be illegal or void, such a decision shall not affect the validity of the remainder of this code.

SECTION 107 REFERENCED STANDARDS.

107.1 General. The codes and standards referenced in this code shall be listed in Section 107.2, and such codes and standards shall be considered as part of the requirements of this code to the prescribed extent of each such reference.

107.2 Referenced Codes and Standards. The codes and standards referenced in this code are as follows:

1. International Building Code
 - a. Chapter 3
 - b. Chapter 11
2. International Energy Conservation Code
3. International Fire Code
4. International Residential Code
5. National Electrical Code Article 625
6. UL2202 and 2594

107.2.1 Conflicts. Where conflicts occur between provisions of this code and referenced codes and standards, the provisions of this code shall apply.

107.2.2 Provisions in Referenced Codes and Standards. Where the extent of the reference to a referenced code or standard includes subject matter that is within the scope of this code, the

provisions of this code, as applicable, shall take precedence over the provisions in the referenced code or standard.

107.3 Applications of References. References to chapter or section numbers, or to provisions not specifically identified by number, shall be construed to refer to such chapter, section, or provision of this code.

107.4 Other Laws. The provisions of this code shall not be deemed to nullify any provisions of local, state, or federal law.

SECTION 108 STOPWORK ORDER.

108.1 Authority. Where the code official finds any work regulated by this code being performed in a manner contrary to the provisions of this code or in a dangerous or unsafe manner, the code official is authorized to issue a stop work order.

108.2 Issuance. The stop work order shall be in writing and shall be given to the owner of the property, the owner's authorized agent, or the person performing the work. Upon issuance of a stop work order, the cited work shall immediately cease. The stop work order shall state the reason for the order and the conditions under which the cited work is authorized to resume.

108.3 Emergencies. Where an emergency exists, the code official shall not be required to give a written notice prior to stopping the work.

108.4 Failure to Comply. Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be subject to fines established by Pitkin County.

SECTION 109 BOARD OF APPEALS.

109.1 General. In order to hear and decide appeals of orders, decisions, or determinations made by the code official relative to the application and interpretation of this code, there shall be and is hereby created a board of appeals. The code official shall be an ex officio member of said board but shall not have a vote on any matter before the board. The board of appeals shall be appointed by the governing body and shall hold office at its pleasure. The board shall adopt rules of procedure for conducting its business and shall render all decisions and findings in writing to the appellant with a duplicate copy to the code official.

109.2 Limitations on Authority. An application for appeal shall be based on a claim that the true intent of this code or the rules legally adopted thereunder have been incorrectly interpreted, the provisions of this code do not fully apply or an equally good or better form of construction is proposed. The board shall not have the authority to waive the requirements of this code.

109.3 Qualifications. The board of appeals shall consist of members who are qualified by experience and training and are not employees of Pitkin County.

Chapter 2 Definitions

SECTION 201 GENERAL.

201.1 Scope. Unless stated otherwise, the following words and terms in this code shall have the meanings indicated in this chapter.

201.2 Interchangeability. Words used in the present tense include the future; words in the masculine gender include the feminine and neuter; the singular number includes the plural and the plural includes the singular.

201.3 Terms Defined in Other Codes. Terms that are not defined in this code but are defined in the International Building Code, International Fire Code, International Fuel Gas Code, International Mechanical Code, International Plumbing Code, International Energy Conservation Code, or International Residential Code shall have the meanings ascribed to them in those codes.

201.4 Terms not Defined. Terms not defined by this chapter or the codes listed under 201.3 shall have ordinarily accepted meanings such as the context implies.

SECTION 202 GENERAL DEFINITIONS.

APPROVED. Acceptable to the code official.

APPROVED AGENCY. An established and recognized agency that is regularly engaged in conducting tests or furnishing inspection services, or furnishing product certification, where such agency has been approved by the code official.

CODE OFFICIAL. The officer or other designated authority charged with the administration and enforcement of this code, or a duly authorized representative.

COMBUSTION EQUIPMENT. For this code, any equipment or appliance used for space-heating, service water heating, cooking, clothes drying or lighting that uses fuel gas or fuel oil.

COMMERCIAL BUILDING. For this code, all commercial buildings and R-Occupancies that are covered by the International Building Code.

CORE AND SHELL. The first phase of a commercial project that has the outer building envelope constructed and may contain interior lighting and heating and has not received a permanent Certificate of Occupancy.

DIRECT CURRENT FAST CHARGER (DCFC) EVSE. Equipment capable of fast charging on a 100A or higher 480VAC three-phase branch circuit. AC power is converted into a controlled DC voltage and current within the EVSE that will then directly charge the electric vehicle.

ELECTRIC VEHICLE (EV). An automotive-type vehicle for on-road use, including but not limited to, passenger automobiles, buses, trucks, vans, neighborhood electric vehicles, and electric motorcycles, primarily powered by an electric motor that draws current from a building electrical service, EVSE, a rechargeable storage battery, a fuel cell, a photovoltaic array, or another source of electric current. Off-road, self-propelled electric mobile equipment, including

but not limited to, industrial trucks, hoists, lifts, transports, golf carts, airline ground support equipment, tractors, and boats are not considered electric vehicles.

ELECTRIC VEHICLE CAPABLE LIGHT SPACE (EV CAPABLE LIGHT SPACE). A designated vehicle parking space that has conduit and/or raceway installed to support future implementation of electric vehicle charging installation, and has sufficient physical space adjacent to the existing electrical equipment for future electric upgrades.

ELECTRIC VEHICLE CAPABLE SPACE (EV CAPABLE SPACE). A designated vehicle parking space that has the electric panel capacity and conduit and/or raceway installed to support future implementation of electric vehicle charging.

ELECTRIC VEHICLE READY SPACE (EV READY SPACE). A designated vehicle parking space that has the electric panel capacity, raceway wiring, receptacle, and circuit overprotection devices installed to support future implementation of electrical vehicle charging.

ELECTRIC VEHICLE SUPPLY EQUIPMENT (EVSE). An electric vehicle charging system or device that is used to provide electricity to a plug-in electric vehicle or plug-in hybrid electric vehicle, is designed to ensure that a safe connection has been made between the electrical grid and the vehicle, and is able to communicate with the vehicle's control system so that electricity flows at an appropriate voltage and current level.

ELECTRIC VEHICLE SUPPLY EQUIPMENT INSTALLED SPACE (EVSE INSTALLED SPACE). A vehicle parking space that is provided with a dedicated EVSE connection.

FIRST TENANT FINISH. The first tenant finish(es) in a new structure or core and shell building that is credited towards meeting the requirements of this Chapter.

FUEL GAS. A natural gas, manufactured gas, liquefied petroleum gas, or mixtures of these gasses.

FUEL OIL. Kerosene or any hydrocarbon oil having a flash point of not less than 100°F (38°C).

FUTURE ELECTRIC EQUIPMENT. Equipment or appliances necessary to support future all-electric space and water heating, cooking, or clothes drying.

PLUG-IN HYBRID ELECTRIC VEHICLE. An electric vehicle having a second source of motive power.

RESIDENTIAL BUILDING. For this code, one- and two-family dwellings and townhouses as defined in the International Residential Code.

Chapter 3 Electric Ready

PART 1 RESIDENTIAL ELECTRIC READY

SECTION RE301 SCOPE

RE301.1 General. These provisions shall be applicable for all new buildings, and major renovations and additions that are 1,000 sf floor area or more and altering combustion equipment systems.

SECTION RE302 ADDITIONAL ELECTRIC INFRASTRUCTURE

RE302.1 Additional Electric Infrastructure. Combustion equipment in residential buildings must meet the requirements of Sections RE302.2 through RE302.6.

Exceptions:

1. Interior fireplaces that do not serve as a primary source of heating.
2. Exterior fireplaces and firepits.

RE302.2 Combustion Equipment. Combustion equipment shall be provided with all of the following:

1. A dedicated, appropriately phased branch circuit sized to accommodate future electric equipment or appliances to serve a comparable capacity to meet the heating load.
2. An electric receptacle or junction box that meets the requirements of Section RE302.5, and is connected to the electrical panel through the branch circuit. Each electrical receptacle or junction box shall have reasonable access to the combustion equipment or dedicated physical space for future electric equipment with no obstructions other than the current combustion equipment.
3. Where combustion equipment is used for space or water heating, dedicated physical space shall be provided for future electric equipment, including an electric resistance backup coil for ducted systems, if applicable.

Exception: Dwelling units with installed air conditioning systems are not required to provide additional dedicated physical space for an outdoor heat pump.

4. Where combustion equipment is utilized for space or water heating, the electrical service shall be sized to include the electrical load necessary for a potential electrical replacement of the combustion-based system. The calculation of electrical loads must adhere to the guidelines outlined in the National Electrical Code (NEC).

RE302.3 Electrical Panel Space. The electrical panel shall have reserved physical space for a minimum two-pole or three-pole circuit breaker for each branch circuit provided for future electric equipment or appliances. The physical space in the electrical panel for each circuit breaker shall be sized with sufficient breaker capacity to meet the electrical demand of the future electric equipment or appliance that is sized to serve a comparable capacity to meet the heating load.

RE302.4 Labeling. The junction box or receptacle and the dedicated circuit breaker space serving future electric equipment or appliances in the electrical panel shall be labeled for their intended use.

RE302.5 Adjacency. The electrical receptacle or junction box must be provided within 3 feet of the combustion equipment or appliances, or within 3 feet of the dedicated physical space for future electric equipment or appliances.

Exception: For combustion equipment dedicated to space or water heating, the electrical receptacle or junction box shall be located not more than 6 feet from the combustion equipment or the dedicated physical space for future electric equipment.

RE302.6 Condensate Drain. Where combustion equipment for space heating and water heating is installed, a location shall be provided for condensate drainage.

PART 2 COMMERCIAL ELECTRIC READY

SECTION CE301 SCOPE

CE301.1 General. These provisions shall be applicable for all new buildings, first tenant finish permits, major renovations and additions that are 1,000 sf floor area or more and altering combustion equipment systems.

CE301.1.1 First Tenant Finishes. In the case that a first tenant finish to a commercial core and shell building or unfinished space is credited towards meeting the requirements of this Chapter, the code official shall not issue a Certificate of Occupancy to the tenant until the requirements of Section CE302 are met.

SECTION CE302 ADDITIONAL ELECTRIC INFRASTRUCTURE

CE302.1 Additional Electric Infrastructure. Combustion equipment in commercial buildings shall meet the electric infrastructure requirements of Sections CE302.2 or CE302.3.

Exceptions:

1. Interior fireplaces that do not serve as a primary source of heating.
2. Exterior fireplaces and fire pits.
3. Additions to buildings that do not provide new space-heating equipment will not be required to provide additional electrical infrastructure to the existing space-heating equipment.

CE302.2 Commercial Buildings and all R-Occupancies. Commercial buildings and all R-occupancies of any size, shall comply with Sections CE302.2.1 through CE302.2.5.

CE302.2.1 Combustion Equipment. Combustion equipment shall be provided with all of the following:

1. A dedicated, appropriately phased branch circuit sized to accommodate future electric equipment or appliances to serve a comparable capacity to meet the heating load.
2. An electric receptacle or junction box that meets the requirements of Section CE302.2.5, and is connected to the electrical panel through the branch circuit. Each electrical receptacle or junction box shall have reasonable access to the combustion equipment or dedicated physical

space for future electric equipment with no obstructions other than the current combustion equipment.

3. Where combustion equipment is used for space or water heating, dedicated space shall be provided for all future electric equipment, including an electric resistance backup coil for ducted systems if applicable.

4. Where combustion equipment is utilized for space or water heating, the electrical service shall be sized to include the electrical load necessary for a potential electrical replacement of the combustion-based system. The calculation of electrical loads must adhere to the guidelines outlined in the National Electrical Code (NEC).

Exception: Buildings with installed air conditioning systems are not required to provide additional dedicated physical space for an outdoor heat pump.

CE302.2.2 Electrical Panel Space. The electrical panel shall have reserved physical space for a minimum two-pole or three-pole circuit breaker for each branch circuit provided for future electric equipment or appliances. The physical space in the electrical panel for each circuit breaker shall be sized with sufficient breaker capacity to meet the electrical demand of the future electric equipment or appliance that is sized to serve a comparable capacity to meet the heating load.

CE302.2.3 Labeling. The junction box or receptacle and the dedicated circuit breaker space serving future electric equipment or appliances in the electrical panel shall be labeled for their intended use.

CE302.2.4 Adjacency. The electrical receptacle or junction box must be provided within 3 feet of the combustion equipment or appliances or within 3 feet of the dedicated physical space for future electric equipment or appliances.

Exception: For combustion equipment dedicated to space or water heating, the electrical receptacle or junction box shall be located not more than 6 feet from the combustion equipment or the dedicated physical space for future electric equipment.

CE302.2.5 Condensate Drain. Where combustion equipment dedicated to space heating and water heating is installed, a location shall be provided for condensate drainage.

Chapter 4 Solar Ready

***Chapter 4 will not be adopted. Solar ready provisions currently live in Chapter 7 of the Pitkin County Land Use Code and will be addressed in a subsequent code adoption.**

Chapter 5 Electric Vehicle Ready

PART 1 RESIDENTIAL ELECTRIC VEHICLE READY

SECTION RV501 SCOPE

RV501.1 General. These provisions shall be applicable for all new buildings, and major renovations and additions that are 1,000 sf or more and altering combustion equipment systems.

SECTION RV502 ELECTRIC VEHICLE POWER TRANSFER INFRASTRUCTURE

RV502 Electric Vehicle Power Transfer Infrastructure. New vehicle parking spaces for residential buildings shall be provided in accordance with Sections RV502.1 and RV502.3.

RV502.1 One- and Two-family Dwellings and Townhouses. Each dwelling unit with a dedicated attached or detached garage or other onsite designated parking provided for the dwelling unit shall be provided with one EV ready space per dwelling unit.

RV502.2 EV Ready Spaces. Each EV ready space shall have a branch circuit that complies with all of the following:

1. Terminates at a receptacle, located within 3 feet of each EV ready space it serves. EV ready includes two adjacent parking spaces if the receptacle for the electrical facilities of this section is installed adjacent to and between both parking spaces.
2. Has a minimum circuit capacity of 40A at 208/240V.
3. The electrical panel, electrical distribution equipment directory, and all outlets or enclosures shall be marked "For future electric vehicle supply equipment".

Exception: A receptacle need not be provided if a hard-wired EVSE is installed.

RV502.3 Identification. Construction documents shall designate the EV ready space and indicate the locations of raceway and/or conduit and the termination points serving them. The circuits or spaces reserved in the electrical panel for EV ready spaces shall be clearly identified in the panel or subpanel directory. The calculation of electrical loads must adhere to the guidelines outlined in the National Electrical Code (NEC).

PART 2 COMMERCIAL ELECTRIC VEHICLE READY

SECTION CV501 SCOPE

CV501.1 General. These provisions shall be applicable for all new buildings, and major renovations and additions that are 1,000 sf or more and altering combustion equipment systems.

SECTION CV502 ELECTRIC VEHICLE POWER TRANSFER INFRASTRUCTURE

CV502 Electric Vehicle Power Transfer Infrastructure. Where new parking is provided for commercial buildings, it shall be provided with electric vehicle power transfer infrastructure in compliance with Sections CV502.1 through CV502.9.

CV502.1 Quantity. The number of required EVSE installed spaces, EV ready spaces, EV capable spaces, and EV capable light spaces shall be determined in accordance with this Section and Table CV502.1 based on the total number of provided vehicle parking spaces and shall be rounded up to the nearest whole number. This includes all covered parking under carports or detached garages.

CV502.1.1 Where more than one parking lot is provided on a building site, the number of provided vehicle parking spaces required to have EV power transfer infrastructure shall be calculated separately for each parking lot.

CV502.1.1.1 R-2 Occupancies, as defined in Chapter 3 of the International Building Code, shall use the total parking requirement for the entire development to determine the EV power transfer infrastructure requirements using Table CV502.1.

CV502.1.2 For commercial buildings that install a DCFC EVSE, each DCFC EVSE installed shall be permitted to be substituted for other space types as follows:

1. Commercial buildings other than R-2 Occupancies shall be permitted to substitute up to 10 spaces when the building provides a minimum of 20 percent of parking spaces as a combination of EV Capable, EV ready, or EVSE installed spaces.
2. R-2 Occupancies shall be permitted to substitute up to 5 spaces when the building provides a minimum of 60 percent of parking spaces as a combination of EV Capable light, EV Capable, EV ready, or EVSE installed spaces.

CV502.1.3 EVSE installed spaces that exceed the minimum requirements of this section are permitted to be used to meet minimum requirements for EV ready spaces, EV capable spaces, and EV capable light spaces.

CV502.1.4 EV ready spaces that exceed the minimum requirements of this section are permitted to be used to meet minimum requirements for EV capable spaces and EV capable light spaces.

CV502.1.5 EV capable spaces that exceed the minimum requirements of this section are permitted to be used to meet the minimum requirements for EV capable light spaces.

CV502.1.6 All attached garages with direct connection to a dwelling unit will be required to have one EV ready space.

Table CV502.1: EV Power Transfer Infrastructure Requirements

Building Type / Space Type	EVSE Installed Space	EV Ready Space	EV Capable Space	EV Capable Light Space
All commercial buildings, except for R-2 occupancies, with 10 or less parking spaces.	0	2 spaces	0	0
Commercial buildings, except for R-2 occupancies, with greater than 10 parking spaces.	2% of spaces	8% of spaces	10% of spaces	10% of spaces
R-2 occupancies with 10 or less parking spaces	0	15% of spaces	10% of spaces	10% of spaces
R-2 occupancies with greater than 10 parking spaces.	5% of spaces	15% of spaces	10% of spaces	30% of spaces

CV502.2 EV Capable Light Spaces. Each EV capable light space shall comply with all of the following:

1. A continuous raceway and/or conduit shall be installed between a suitable electrical panel or other electrical distribution equipment and terminate within 3 feet of the EV capable light space and shall be capped. EV capable light includes two adjacent parking spaces if the raceway and/or conduit terminates adjacent to and between both parking spaces.
2. Installed raceway and/or conduit shall be sized and rated to supply a minimum of 208 volts and a minimum of 40-ampere rated circuits.
3. Dedicated physical space to accommodate all equipment necessary for electrical service to future EVSE.
4. The routing of the raceway and/or conduit must be noted on the construction documents and the raceway shall be permanently and visibly marked “EV CAPABLE” at the load center and termination point locations.

CV502.3 EV Capable Spaces. Each EV capable space shall comply with all of the following:

1. A continuous raceway and/or conduit shall be installed between a suitable electrical panel or other electrical distribution equipment and terminate within 3 feet of the EV capable space and shall be capped. EV capable includes two adjacent parking spaces if the raceway and/or conduit terminates adjacent to and between both parking spaces.
2. The installed raceway and/or conduit shall be sized and rated to supply a minimum of 208 volts and a minimum of 40-ampere rated circuits.
3. The electrical panel or other electrical distribution equipment to which the raceway and/or conduit connects shall have sufficient dedicated space and spare electrical capacity to supply a minimum of 208 volts and a minimum of 40-ampere rated circuits.
4. The termination point of the conduit and/or raceway and the electrical distribution equipment directory shall be marked: "For future electric vehicle supply equipment (EVSE)."
5. Reserved capacity shall be no less than 40A at 208/240V for each EV capable space.

CV502.4 EV Ready Spaces. Each EV ready space shall have a branch circuit that complies with all of the following:

1. Terminates at a receptacle or junction box located within 3 feet of each EV ready space it serves. EV ready includes two adjacent parking spaces if the receptacle is installed adjacent to and between both parking spaces.
2. Has a minimum circuit capacity of 40A at 208/240V.
3. The electrical panel, electrical distribution equipment directory, and all outlets or enclosures shall be marked "For future electric vehicle supply equipment (EVSE)."

CV502.5 Electric Vehicle Supply Equipment (EVSE). All EVSE shall meet all of the following requirements:

1. The installed EVSE shall meet one of the following requirements:
 - a. A power capacity of at least 30A at 208/240V and has the ability to connect to the internet.
 - b. An inductive charging system for battery-powered electric vehicles that:
 - i. Is ENERGY STAR certified; and
 - ii. Has the ability to connect to the internet.
2. An electric vehicle charging system shall be wall-mounted or pedestal style and may provide multiple cords to connect with electric vehicles.
3. An electric vehicle charging system shall be listed and labeled for EV charging and must comply with the current version of Article 625 of the National Electrical Code.

CV502.6 EVSE Installed Spaces. An installed EVSE with multiple output connections shall be permitted to serve multiple EVSE installed spaces. Each EVSE installed serving either a single EVSE installed space or multiple EVSE installed spaces, shall comply with all of the following:

1. Have a minimum charging rate in accordance with Section CV502.7.
2. Be located within 3 feet of each EVSE installed space it serves.
3. Be installed in accordance with Section CV502.8.
4. Have a minimum circuit capacity of 8.3 kVA (40A 208/240V).
5. Must meet the requirements of Section CV502.5.

CV502.7 EVSE Minimum Charging Rate. Each installed EVSE shall comply with one of the following:

1. Be capable of charging at a minimum rate 30A at 208/240V.
2. When serving multiple EVSE installed spaces and controlled by an energy management system providing load management, be capable of simultaneously sharing each EVSE installed space at a minimum charging rate of no less than 3.3 kVA.

CV502.8 EVSE Installation. EVSE shall be installed in accordance with NFPA 70 and shall be listed and labeled in accordance with UL 2202 or UL 2594. When serving an accessible parking space, EVSE shall be accessible in accordance with the International Building Code Chapter 11.

CV502.9 Identification. Construction documents shall designate all EVSE installed spaces, EV ready spaces, EV capable spaces, and EV capable light spaces, and indicate the locations of raceway and/or conduit and termination points serving them. The circuits or spaces reserved for EVSE installed spaces, EV ready spaces, and EV capable spaces shall be clearly identified in the panel or subpanel directory. The raceway and/or conduit for EV ready spaces, EV capable spaces and EV capable light spaces shall be clearly identified at both the panel or subpanel and the termination point at the parking space.

11.35 WILDFIRE RESILIENCY CODE

Chapter 1 Scope and Administration

SECTION 101 SCOPE AND GENERAL REQUIREMENTS.

101.1 Title. These regulations shall be known as the Wildfire Resiliency Code as adopted by Pitkin County, hereinafter referred to as “this code.”

101.2 Scope. The provisions of this code shall apply to the construction, alteration, movement, repair, maintenance and use of any building, structure or premises that contain occupiable and/or habitable space or change in use resulting in an occupiable and/or habitable space, unless excepted, within the wildland-urban interface areas of Colorado, as designated in this code. Buildings or conditions in existence at the time of the adoption of this code are allowed to have their use or occupancy continued, if such condition, use or occupancy was legal at the time of the

adoption of this code, provided that such continued use does not constitute a distinct danger to life or property. Buildings or structures moved into or within the jurisdiction shall comply with the provisions of this code for new buildings or structures.

101.2.1 Reserved.

101.2.2 Factory-Built Structures (non-residential, residential, and tiny homes). Structure hardening provisions of this code for factory-built structures as defined by sections 24-32-3302(9), (10), (11), and (35), C.R.S., are in accordance with Rules adopted by the Division of Housing in 8 CCR 1302-1, Rule 2 Codes and Standards.

101.2.3 HUD Code Homes. Homes built to the HUD Manufactured Home Construction and Safety Standards are exempt from structure hardening requirements on their first installation. Homes built to the HUD Manufactured Home Construction and Safety Standards which are moved into an applicable Wildfire Resiliency code area are subject to the provisions of this code as required by the authority having jurisdiction.

101.3 Purpose. The purpose of this code is to establish minimum regulations for the safeguarding of life and for property protection. Regulations in this code are intended to mitigate the risk to life and structures from intrusion of fire from wildland fire exposures and fire exposures from adjacent structures and to mitigate structure fires from spreading to wildland fuels. The extent of this regulation is intended to be tiered commensurate with the relative level of hazard present. The unrestricted use of property in wildland-urban interface areas is a potential threat to life and property from fire and resulting erosion. Safeguards to prevent the occurrence of fires and to provide adequate fire protection facilities to control the spread of fire in wildland-urban interface areas shall be in accordance with this code. This code shall supplement the jurisdiction's building and fire codes, if such codes have been adopted, to provide for special regulations to mitigate the fire- and life-safety hazards of the wildland-urban interface areas.

101.4 Retroactivity. The provisions of the code shall apply to conditions arising after the adoption thereof, conditions not legally in existence at the adoption of this code and conditions that, in the opinion of the code official, constitute a distinct hazard to life or property.

Exception: Provisions of this code that specifically apply to existing conditions are retroactive.

101.5 Additions or alterations. Additions or alterations shall be permitted to be made to any building or structure without requiring the existing building or structure to comply with all of the requirements of this code, provided that, when the work increases the floor area of the existing structure by 500 square feet or greater, the addition or alteration conforms to that required for a new building or structure.

Exception: Provisions of this code that specifically apply to existing conditions are retroactive.

Additions or alterations shall not be made to an existing building or structure that will cause the existing building or structure to be in violation of any of the provisions of this code nor shall

such additions or alterations cause the existing building or structure to become unsafe. An unsafe condition shall be deemed to have been created if an addition or alteration will cause the existing building or structure to become structurally unsafe or overloaded; will not provide adequate access in compliance with the provisions of this code or will obstruct existing exits or access; will create a fire hazard; will reduce required fire resistance or will otherwise create conditions dangerous to human life.

101.6 Roof coverings. The roof covering on buildings or structures in existence prior to adoption of this code that are replaced or have 25 percent or more of the surface area of the roof replaced, or where work to reconstruct, alter, or repair the roof covering effectively replaces such material, shall require the entirety of the roof covering to be replaced with a roof covering required for new construction specified in Sections 403.2 through 403.2.2.

Exception: Existing roof coverings classified as Class A and compliant with Section 403.2.

101.7 Exterior walls. The exterior walls of building or structures in existence prior to adoption of this code where 25 percent or more of the total exterior wall surface area is replaced, or where work to reconstruct, alter or repair the exterior walls effectively replaces the exterior wall material, shall require the entirety of the exterior wall surface area, including attachments, to be replaced with materials required for new construction specified in Section 404.3 through 404.3.2 and the immediate zone within 5 feet of the structure shall be made to comply with Section 503.1.

Exception: Existing exterior walls that are compliant with Section 404.3.

101.8 Maintenance. Buildings, structures, landscape materials, vegetation, defensible space or other devices or safeguards required by this code shall be maintained in conformance to the code edition under which installed. The owner or the owner's authorized agent shall be responsible for the maintenance of buildings, structures, and defensible space.

SECTION 102—APPLICABILITY

102.1 General. Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall govern. Where, in any specific case, different sections of this code, or any other adopted code, specify different materials, methods of construction or other requirements, the most restrictive shall govern.

102.2 Other laws. The provisions of this code shall not be deemed to nullify any provisions of local, state or federal law.

102.3 Application of references. References to chapter or section numbers, or to provisions not specifically identified by number, shall be construed to refer to such chapter, section or provision of this code.

102.4 Referenced codes and standards. The codes and standards referenced in this code are listed throughout this code. Such codes and standards shall be considered as part of the

requirements of this code to the prescribed extent of each such reference and as further regulated in Sections 102.4.1 and 102.4.2.

102.4.1 Conflicts. Where conflicts occur between provisions of this code and the referenced codes and standards, the provisions of this code shall govern.

102.4.2 Provisions in referenced codes and standards. Where the extent of the reference to a referenced code or standard includes subject matter that is within the scope of this code, the provisions of this code, as applicable, shall take precedence over the provisions in the referenced standard.

102.5 Subjects not regulated by this code. Where applicable standards or requirements are not set forth in this code, or are contained within other laws, codes, regulations, ordinances or policies adopted by the authority having jurisdiction, compliance with applicable standards of other nationally recognized safety standards, as approved, shall be deemed as prima facie evidence of compliance with the intent of this code. Nothing herein shall derogate from the authority of the code official to determine compliance with codes or standards for those activities or installations within the code official's jurisdiction or responsibility.

102.6 Matters not provided for. Requirements that are essential for the public safety of an existing or proposed activity, building or structure, or for the safety of the occupants thereof, which are not specifically provided for by this code, shall be determined by the code official consistent with the necessity to establish the minimum requirements to safeguard the public health, safety and general welfare.

102.7 Partial invalidity. In the event that any part or provision of this code is held to be illegal or void, this shall not have the effect of making void or illegal any of the other parts or provisions.

102.8 Existing conditions. The legal occupancy or use of any structure or condition existing on the date of adoption of this code shall be permitted to continue without change, except as is specifically covered in this code, the International Fire Code or the International Property Maintenance Code, or as is deemed necessary by the code official for the general safety and welfare of the occupants and the public.

102.9 Historic structures. A variance of standards or exemption from this code is authorized to be issued by the Historic Preservation Officer. The historic structures variance or exemption must be requested by the applicant in writing. The Historic Preservation Officer may provide a historic structures variance or exemption for the buildings and structures after making a determination that the structure(s) meets one of the following criteria below. A variance of standards or exemption shall be documented in writing and shall be retained in the official records.

1. The historic structure is located in the Redstone Historic District, or
2. The historic structure outside the Redstone Historic District is designated either federally, by the state, or locally, or

3. The historic structure is listed on the Pitkin County Historic Inventory or eligible for either: the Pitkin County Historic Inventory or state or federal historic designation.

102.10 Work exempt from permit under this code. Exemptions from code requirements shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this code or any other laws or ordinances of the jurisdiction. Compliance with this code shall not be required for the following:

1. Interior alterations of existing structures.
2. Additions that do not increase the floor area of a building or footprint of a structure by more than 500 square feet.
3. The reconstruction, replacement, alteration, or repair of the exterior walls of an existing building, when less than 25 percent of the surface area of all exterior walls is affected.
4. The reconstruction, replacement, alteration, or repair of the exterior roof covering of an existing building, when less than 25 percent of the surface area of the exterior roof covering or an attachment thereto is affected.
5. Alterations or repairs to the exterior of an existing structure, or an attachment to it, when less than twenty-five percent of the exterior of the structure is affected by the alteration or repair.
6. Painting, staining and similar maintenance or restorative work.
7. One-story detached accessory, non-habitable structures, such as tool and storage sheds, playhouses and similar uses, provided that the floor area does not exceed 120 square feet and the structure is located greater than or equal to 10 feet from the nearest adjacent occupiable structure or property line.
8. Fences located more than 8 feet from a habitable structure.
9. Any parcels sized thirty-five acres or greater with only one residential structure on it that does not share a property boundary with a residential or commercial property.

102.11 Agricultural Buildings. Buildings of an accessory character classified as Group U occupancy (including agricultural buildings) shall meet Class 1 Code Requirements (exempt from Class 2 Code Requirements) if the building meets the following criteria:

1. The building does not contain a dwelling or occupiable or habitable space, and
2. The building is located at least 50 feet from a building containing occupiable or habitable space, and

The building is located at least 50 feet from any property boundary.

102.12 Federal Lands. This code shall apply to all Federal lands in unincorporated Pitkin County.

SECTION 103—CODE COMPLIANCE AGENCY

103.1 Creation of agency. The Pitkin County Community Development Department, Chief Building Official shall be known as the code official. The function of the agency shall be the implementation, administration and enforcement of the provisions of this code.

103.2 Reserved.

103.3 Deputies. In accordance with the prescribed procedures of this jurisdiction and with the concurrence of the appointing authority, the code official shall have the authority to appoint inspectors and other employees. Such employees shall have powers as delegated by the code official.

SECTION 104—DUTIES AND POWERS OF THE CODE OFFICIAL

104.1 Powers and duties of the code official. The code official is hereby authorized to enforce the provisions of this code.

104.2 Determination of compliance. The code official shall have the authority to determine compliance with this code, to render interpretations of this code and to adopt policies and procedures in order to clarify the application of its provisions. Such interpretations, policies and procedures:

1. Shall be in compliance with the intent and purpose of this code.
2. Shall not have the effect of waiving requirements specifically provided for in this code.

104.2.1 Technical assistance. To determine compliance with this code, the code official is authorized to require the owner, the owner's authorized agent or the person in possession or control of the building or premises to provide a technical opinion and report.

104.2.1.1 Costs. A technical opinion and report shall be provided without charge to the jurisdiction.

104.2.1.2 Preparer qualifications. The technical opinion and report shall be prepared by a qualified engineer, specialist, laboratory or fire safety specialty organization acceptable to the code official. The code official is authorized to require design submittals to be prepared by, and bear the stamp of a registered design professional.

104.2.1.3 Content. The technical opinion and report shall analyze the properties of the design, operation or use of the building or premises, the facilities and appurtenances situated thereon and fuel management to identify and propose necessary recommendations.

104.2.1.4 Tests. Where there is insufficient evidence of compliance with the provisions of this code, the code official shall have the authority to require tests as evidence of compliance. Test methods shall be as specified in this code or by other recognized test standards. In the absence of recognized test standards, the code official shall approve the testing procedures. Such tests shall be performed by a party acceptable to the code official.

104.2.2 Alternative materials, design and methods. The provisions of this code are not intended to prevent the installation of any material or to prohibit any design or method of construction not specifically prescribed by this code, provided that any such alternative has been approved by the code official.

104.2.2.1 Approval authority. An alternative material, design or method shall be approved where the code official finds that the proposed alternative is satisfactory and complies with Sections 104.2.2.2 through 104.2.2.7, as applicable.

104.2.2.2 Application and disposition. A request to use an alternative material, design or method of construction shall be submitted in writing to the code official for approval. Where the alternative material, design or method of construction is not approved, the code official shall respond in writing, stating the reasons the alternative was not approved.

104.2.2.3 Compliance with code intent. An alternative material, design or method of construction shall comply with the intent of the provisions of this code.

104.2.2.4 Equivalency criteria. An alternative material, design or method of construction shall, for the purpose intended, be not less than the equivalent of that prescribed in this code with respect to all of the following, as applicable:

1. Quality.
2. Strength.
3. Effectiveness.
4. Durability.
5. Safety, other than fire safety.
6. Fire safety.

104.2.2.5 Tests. Tests conducted to demonstrate equivalency in support of an alternative material, design or method of construction application shall be of a scale that is sufficient to predict performance of the end use configuration. Tests shall be performed by a party acceptable to the code official.

104.2.2.5.1 Fire tests. Tests conducted to demonstrate equivalent fire safety in support of an alternative material, design or method of construction application shall be of a scale that is sufficient to predict fire safety performance of the end use configuration. Tests shall be performed by a party acceptable to the code official.

104.2.2.6 Reports. Supporting data, where necessary to assist in the approval of materials or assemblies not specifically provided for in this code, shall comply with Sections 104.2.2.6.1 and 104.2.2.6.2.

104.2.2.6.1 Evaluation reports. Evaluation reports shall be issued by an approved agency and use of the evaluation report shall require approval by the code official for the installation. The alternate material, design or method of construction and product evaluated shall be within the scope of the code official's recognition of the approved agency. Criteria used for the evaluation shall be identified within the report and, where required, provided to the code official.

104.2.2.6.2 Other reports. Reports not complying with Section 104.2.2.6.1 shall describe criteria, including but not limited to any referenced testing or analysis, used to determine compliance with code intent and justify code equivalence. The report shall be prepared by a qualified engineer, specialist, laboratory or fire safety specialty organization acceptable to the code official. The code official is authorized to require design submittals to be prepared by, and bear the stamp of, a registered design professional.

104.2.2.7 Peer review. The code official is authorized to require submittal of a peer review report in conjunction with a request to use an alternative material, design or method of construction, prepared by a peer reviewer that is approved by the code official.

104.2.3 Modifications. Where there are practical difficulties involved in carrying out the provisions of this code, the code official shall have the authority to grant modifications for individual cases, provided that the code official shall first find that one or more special individual reasons make the strict letter of this code impractical, that the modification is in conformance with the intent and purpose of this code, and that such modification does not lessen health, life and fire safety requirements. The details of the written request and action granting modifications shall be recorded and entered into the official records.

104.3 Applications and permits. The code official is authorized to receive applications, review construction documents and issue permits for construction regulated by this code, issue permits for operations regulated by this code, inspect the premises for which such permits have been issued and enforce compliance with the provisions of this code.

104.4 Access to Property. For the purpose of inspecting and enforcing the provisions of this code and the terms and conditions of any permit issued under this code, the code official is authorized to enter upon private property at reasonable times and upon reasonable notice for the purpose of determining compliance with this code and to evaluate conditions relative to the permit application.

104.4.1 Authorization. The owner or occupant of the property having a permit under this code shall allow the code official access to the property to perform the required inspections. If access is denied, the code official shall apply to the Court with jurisdiction to seek authority to access the property.

104.5 Identification. The code official shall carry proper identification when inspecting structures or premises in the performance of duties under this code.

104.6 Notices and orders. The code official shall issue all necessary notices or orders to ensure compliance with this code.

104.7 Official records. The code official shall keep official records as required by Sections 104.7.1 through 104.7.5. Such official records shall be retained for not less than 5 years or for as long as the structure or activity to which such records relate remains in existence, unless otherwise provided by other regulations.

104.7.1 Approvals. A record of approvals shall be maintained by the code official and shall be available for public inspection during business hours in accordance with applicable laws.

104.7.2 Inspections. The code official shall keep a record of each inspection made, including notices and orders issued, showing the findings and disposition of each.

104.7.3 Code alternatives and modifications. Application for alternative materials, design and methods of construction and equipment in accordance with Section 104.2.2; modifications in accordance with Section 104.2.3; and documentation of the final decision of the code official for either shall be in writing and shall be retained in the official records.

104.7.4 Tests. The code official shall keep a record of tests conducted to comply with Sections 104.2.1.4 and 104.2.2.5.

104.7.5 Fees. The code official shall keep a record of fees collected and refunded in accordance with Section 106.

104.8 Liability. The code official, member of the board of appeals or employee charged with the enforcement of this code, while acting for the jurisdiction, in good faith and without malice in the discharge of the duties required by this code or other pertinent law or ordinance, shall not thereby be rendered personally liable, either civilly or criminally, and is hereby relieved from all personal liability for any damage accruing to persons or property as a result of an act or by reason of any act or omission in the discharge of official duties.

104.8.1 Legal defense. Any suit or criminal complaint instituted against any officer or employee because of an act performed by that officer or employee in the lawful discharge of duties and under the provisions of this code or other laws or ordinances implemented through the enforcement of this code shall be defended by legal representatives of the jurisdiction until final termination of the proceedings. The code official or any subordinate shall not be liable for costs in an action, suit or proceeding that is instituted in pursuance of the provisions of this code.

104.9 Approved materials and equipment. Materials, equipment and devices approved by the code official shall be constructed and installed in accordance with such approval.

104.9.1 Materials and equipment reuse. Materials, equipment and devices shall not be reused unless such elements are in good working order and approved.

104.10 Other agencies. When requested to do so by the code official, other officials of this jurisdiction shall assist and cooperate with the code official in the discharge of the duties required by this code.

SECTION 105—TEMPORARY USES, EQUIPMENT AND SYSTEMS

105.1 General. The code official is authorized to issue a permit for temporary uses, equipment and systems. Such permits shall be limited as to time of service, but shall not be permitted for more than 180 days. The code official is authorized to grant extensions for demonstrated cause.

105.2 Conformance. Temporary uses, equipment and systems shall conform to the requirements of this code as necessary to ensure health, safety and general welfare.

105.3 Temporary service utilities. The code official is authorized to give permission to temporarily supply service utilities.

105.4 Termination of approval. The code official is authorized to terminate such permit for temporary uses, equipment and systems and to order the same to be discontinued.

SECTION 106—RESERVED

106.1 Reserved.

SECTION 107—STOP WORK ORDER

107.1 Authority. Where the code official finds any work regulated by this code being performed in a manner contrary to the provisions of this code or in a dangerous or unsafe manner, the code official is authorized to issue a stop work order.

107.2 Issuance. The stop work order shall be in writing and shall be given to the owner of the property, the owner's authorized agent or the person performing the work. Upon issuance of a stop work order, the cited work shall immediately cease. The stop work order shall state the reason for the order and the conditions under which the cited work is authorized to resume.

107.3 Emergencies. Where an emergency exists, the code official shall not be required to give a written notice prior to stopping the work.

107.4 Failure to comply. Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be subject to fines established by the authority having jurisdiction.

Chapter 2 – Definitions

SECTION 201 GENERAL

201.1 Scope. Unless otherwise expressly stated, the following words and terms shall, for the purposes of this code, have the meanings shown in this chapter.

201.2 Interchangeability. Words stated in the present tense include the future; words stated in the masculine gender include the feminine and neuter; and the singular number includes the plural and the plural the singular.

201.3 Terms defined in other codes. Where terms are not defined in this code and are defined in other International Codes, such terms shall have the meanings ascribed to them as in those codes.

201.4 Terms not defined. Where terms are not defined through the methods authorized by this section, such terms shall have their ordinarily accepted meanings such as the context implies.

SECTION 202 DEFINITIONS

ACCESSORY STRUCTURE. A building or structure used to shelter or support any material, equipment, chattel or occupancy other than a habitable building.

AGRICULTURAL BUILDING. A structure designed and constructed to house farm implements, hay, grain, poultry, livestock or other horticultural products. This structure shall not be a place of human habitation or a place of employment where agricultural products are processed, treated or packaged, nor shall it be a place used by the public.

APPROVED. Acceptable to the code official.

BUILDING. Any structure intended for supporting or sheltering any occupancy.

CLASS A TESTS. Class A Tests are applicable to roof coverings that are expected to be effective against severe fire exposure, afford a high degree of fire protection to the roof deck, do not slip from position, and are not expected to present a flying brand hazard.

CODE OFFICIAL. The official designated by the jurisdiction to interpret and enforce this code, or the code official's authorized representative.

DEFENSIBLE SPACE. An area either natural or man-made, where material capable of allowing a fire to spread unchecked has been treated, cleared or modified to slow the rate and intensity of an advancing wildfire and to create an area for fire suppression operations to occur.

EMBELLISHMENTS. Elements incorporated in design and construction for ornamental or decorative purpose that are not integral to the structure or structural support.

FIRE CODE OFFICIAL. Code Official representative from the Fire District Authority having jurisdiction in the area where development is located.

FIRE INTENSITY CLASSIFICATION. The level of fire intensity identified for areas where significant fuel hazards and associated dangerous fire behavior may exist, based upon vegetative fuels, topography, weather conditions, and flame length value.

FIRE-RESISTANCE-RATED CONSTRUCTION. The use of materials and systems in the design and construction of a building or structure to safeguard against the spread of fire within a building or structure and the spread of fire to or from buildings or structures to the wildland-urban interface area.

FIRE-RETARDANT-TREATED WOOD. Fire-retardant-treated wood is any wood product that, when impregnated with chemicals by a pressure process or other means during manufacture, shall have, when tested in accordance with ASTM E84 or UL 723, a listed flame spread index of 25 or less. The ASTM E84 or UL723 test shall be continued for an additional 20-minute period and the flame front shall not progress more than 10.5 feet beyond the centerline of the burners at any time during the test.

FLAME SPREAD INDEX. A comparative measure, expressed as a dimensionless number, derived from visual measurements of the spread of flame versus time for a material tested in accordance with ASTM E84.

FUEL MODIFICATION. A method of modifying fuel load by reducing the amount of nonfire-resistive vegetation or altering the type of vegetation to reduce the fuel load.

HABITABLE SPACE. A space in a building for living, sleeping, eating or cooking.

HEAVY TIMBER CONSTRUCTION. As described in Section 602.4 of the 2021 International Building Code.

HOME IGNITION ZONE. Home Ignition Zone (HIZ) is the home and the area around the home (or structure). The HIZ takes into account both the potential of the structure to ignite and the quality of defensible space surrounding it.

IGNITION-RESISTANT BUILDING MATERIAL. A type of building material that resists ignition or sustained flaming combustion sufficiently to reduce losses from wildfire exposure of burning embers and small flames. Material shall be tested on the front and back faces in accordance with the extended ASTM E84 or UL 723 test, for a total test period of 30 minutes, or with the ASTM E2768 test. The material shall exhibit a flame spread index not exceeding 25. The material shall exhibit a flame front that does not progress more than 10 feet 6 inches beyond the centerline of the burner at any time during the test. The materials shall bear identification showing the fire test results. Panel products shall be tested with a ripped or cut longitudinal gap of 1/8 inch. Materials or products which melt, drip or delaminate to the extent that the flame front is interrupted are not permitted.

Exception: Materials composed of a combustible core and a noncombustible exterior covering made from either aluminum at a minimum 0.019 inch thickness or corrosion-resistant steel at a minimum 0.0149 inch thickness shall not be required to be tested with a ripped or cut longitudinal gap.

IGNITION-RESISTANT BUILDING MATERIAL WEATHERING. Ignition-resistant building materials shall maintain their performance. The materials shall meet the following performance requirements for weathering (including exposure to temperature, moisture and ultraviolet radiation

1. **Evaluation requirements for weathering.** Fire-retardant-treated wood, wood-plastic composite materials and plastic lumber materials shall be evaluated after weathering in accordance with Method A “Test Method for Accelerated Weathering of Fire-Retardant-Treated Wood for Fire Testing” in ASTM D2898.
2. **Wood-plastic composite materials.** Wood-plastic composite materials shall also demonstrate acceptable fire performance after weathering by the following procedure: first testing in accordance with ASTM E1354 at an incident heat flux of 50 kW/m² in the horizontal orientation, then weathering in accordance with ASTM D7032 and then retesting in accordance with ASTM E1354 and exhibiting an increase of no more than 10 percent in peak rate of heat release when compared to the peak heat release rate of the nonweathered material.
3. **Plastic lumber materials.** Plastic lumber materials shall also demonstrate acceptable fire performance after weathering by the following procedure: first testing in accordance with ASTM E1354 at an incident heat flux of 50 kW/m² in the horizontal orientation, then weathering in accordance with ASTM D6662 and then retesting in accordance with ASTM E1354 and exhibiting an increase of no more than 10 percent in peak rate of heat release when compared to the peak heat release rate of the nonweathered material.

IGNITION-RESISTANT VEGETATION. Vegetation that includes but is not limited to plants with Ignitability Scores of eight (8) or greater listed in the Colorado State University Extension and Colorado State Forest Service Fact Sheet 6.305 for Ignition-Resistant Landscape Plants. The Fact Sheet may be updated from time to time.

LOG WALL CONSTRUCTION. A type of construction in which exterior walls are constructed of solid wood members and where the smallest horizontal dimension of each solid wood member is not less than 6 inches. Log wall construction shall follow requirements of ICC 400.

MULTILAYERED GLAZED PANELS. Window or door assemblies that consist of two or more independently glazed panels installed parallel to each other, having a sealed air gap in between, within a frame designed to fill completely the window or door opening in which the assembly is intended to be installed.

NONCOMBUSTIBLE. As applied to building construction material means a material that, in the form in which it is used, is either of the following:

1. Material of which no part will ignite and burn when subjected to fire.
2. Any material conforming to ASTM E136 shall be considered noncombustible within the meaning of this section.
3. For the purposes of this code, fire-rated gypsum board tested in accordance with ASTM C1396 with no less than a 1-hour fire-resistance-rating with fire exposure from the outside only is considered a noncombustible material.

OCCUPIABLE SPACE. A room or enclosed space designed for human occupancy in which individuals congregate for amusement, education or similar purposes or in which occupants are engaged at labor.

ROOF ASSEMBLY. A system designed to provide weather protection and resistance to design loads. The system consists of a roof covering and roof deck or a single component serving as both the roof covering and the roof deck. A roof assembly can include an underlayment, thermal barrier, ignition barrier, insulation or a vapor retarder.

ROOF COVERING. The covering applied to the roof deck for weather resistance, fire classification or appearance.

ROOF DECK. The flat or sloped surface not including its supporting members or vertical supports.

SLOPE. The variation of terrain from the horizontal; the number of feet rise or fall per 100 feet measured horizontally, expressed as a percentage.

STRUCTURE. That which is built or constructed.

STRUCTURE IGNITION ZONE. Structure Ignition Zone (SIZ) is the structure and the area around the structure (or home). The SIZ takes into account both the potential of the structure to ignite and the quality of defensible space surrounding it.

TREE CROWN. The primary and secondary branches growing out from the main stem, together with twigs and foliage. The dimensions of tree crowns at maturity shall be utilized to determine compliance with codes.

WILDLAND-URBAN INTERFACE. That geographical area where structures and other human development meets or intermingles with wildland or vegetative fuels.

Chapter 3 - Wildfire Hazard Identification

SECTION 301 GENERAL

301.1 Scope. The provisions of this chapter provide methodology to establish and record wildfire hazard based on the findings of fact to be regulated by this code.

301.2 Objective. The objective of this chapter is to provide simple baseline criteria for determining wildland-urban interface areas based on the wildfire hazard.

SECTION 302 WILDLAND-URBAN INTERFACE AREA DESIGNATIONS

302.1 Declaration. The Code Official shall declare the wildland-urban interface areas within the jurisdiction as defined by this code. The wildland-urban interface areas shall be based on the findings of fact.

SECTION 303 MAPPING AND APPLICABILITY

303.1 Mapping of Wildfire Hazard Areas. Wildland-Urban Interface Fire Intensity Classification Map (“Wildfire Hazard Map”) is maintained by the Division of Fire Prevention and Control and the Colorado State Forest Service at the direction of the Colorado Wildfire Resiliency Board, as amended from time to time.

303.1.1 Map. The map is based on a combination of factors including, but not limited to, vegetative fuels, topography, local weather patterns, and fire behavior modeling data.

303.1.2 Locally Developed Mapping. The Code Official may develop and adopt local maps designating wildfire hazard and fire intensity classifications within its jurisdictional boundaries in accordance with Sections 303.1 through 303.3.

303.2 Fire Intensity Classification. Fire Intensity Classification shall be identified on the map in accordance with Section 303.1. Fire Intensity Classification is determined by expected wildfire behavior, including flame length and suppression difficulty and is separated into three levels: low, moderate, and high. The identified fire intensity classification establishes code requirements for construction and mitigation.

303.2.1 Low Fire Intensity Classification. Low Fire Intensity Classification is identified in areas with light to medium surface fuels, such as grasses, shrubs, and scattered low-density vegetation. These fuels are often discontinuous, which limits flame propagation but can sustain burning under moderate weather conditions. Fires in this class may occur on gentle to moderate slopes, where topography begins to influence the rate of spread. Although flame lengths remain relatively small—typically less than two feet—limited spotting may occur, especially with wind. Trained firefighters with protective equipment and standard hand tools can usually suppress these fires through direct attack, particularly on slopes under 30 percent. Mechanized equipment is typically unnecessary.

Key Characteristics Include:

1. **Fuels:** Light to medium surface fuels, including grasses, shrubs, and scattered vegetation (e.g., WNL, USL fuel types).
2. **Flame Length:** Less than 2 feet.
3. **Rate of Spread:** Low, increasing with slopes over 20 percent.
4. **Spotting:** Very short-range spotting is possible under windy conditions.
5. **Terrain Influence:** More active fire behavior on moderate slopes (20 to 30 percent).
6. **Suppression Difficulty:** Easily suppressed by trained firefighters using basic protective gear and hand tools. Direct attack is effective, and mechanized support is rarely needed.

303.2.2 Moderate Fire Intensity Classification. Moderate Fire Intensity Classification is identified in areas with moderate to heavy fuel loads, such as dense shrubs, small trees, and accumulated ground fuels. Fires in this class present continuous horizontal and vertical fuel arrangements, allowing flames to reach up to 8 feet in length. Fire behavior is notably influenced by moderate to steep slopes, often accelerating the spread. Short-range spotting becomes more common, complicating suppression efforts. Ground crews typically require mechanized support, such as engines and dozers, to establish control lines. Aircraft assistance may be necessary, particularly in inaccessible terrain. There is a significant increase in the potential for property damage and risk to life, especially in wildland-urban interface areas.

Key Characteristics Include:

1. **Fuels:** Moderate to heavy fuels, including dense shrublands, small trees, timber litter, and canopy fuels (e.g., USH, UIH fuel types).
2. **Flame Length:** Up to 8 feet.
3. **Rate of Spread:** Moderate to high, increasing significantly on slopes over 30 percent.
4. **Spotting:** Short-range spotting is common.
5. **Terrain Influence:** Steep slopes (30 percent or greater) increase fire spread and intensity.
6. **Suppression Difficulty:** Challenging for ground crews without support from engines, dozers, or aircraft. Dozers and plows are generally effective on moderate terrain.

303.2.3 High Fire Intensity Classification. High Fire Intensity Classification is identified in areas with heavy, continuous fuel loads, such as dense forest canopies, thick understory growth, and heavy dead/downed material. Fires in this class frequently occur on steep slopes, often exceeding 40 percent, where topography dramatically increases the rate of spread and severity. Flame lengths can exceed 30 feet, and both short- and medium-range spotting are common, particularly in windy conditions. Direct suppression by ground crews is typically ineffective, requiring indirect attack strategies, such as backburns and aerial retardant drops. Fires in this

class pose extreme risk to life, property, and firefighter safety, especially in rugged or remote areas.

Key Characteristics Include:

1. **Fuels:** Heavy fuels, including dense forests, urban core areas with heavy fuel loads, and canopy-dominated regions (e.g., WNH, USH, UCH fuel types).
2. **Flame Length:** Up to 30 feet or more.
3. **Rate of Spread:** Rapid, especially on slopes greater than 40 percent.
4. **Spotting:** Short-range spotting is common; medium-range spotting is possible under windy conditions.
5. **Terrain Influence:** Slopes over 40 percent amplify intensity and spread, creating dangerous conditions for suppression.
6. **Suppression Difficulty:** Direct attack by ground forces and dozers is generally ineffective. Indirect strategies (backburning, aerial support) are often necessary. These fires present significant danger to life, property, and responder safety.

303.3 Applicability of Code Provisions. The requirements of this code shall apply to all parcels as described below. The level of structure hardening, defensible space, and other mitigation measures required shall correspond to the applicable fire intensity classification—Low, Moderate, or High.

303.3.1 Low Fire Intensity. Structures and parcels identified with low fire intensity classification shall be constructed and maintained in accordance with the provisions for Class 1 structure hardening and site and area requirements.

303.3.2 Moderate to High Fire Intensity. Structures and parcels identified with moderate to high fire intensity classifications shall be constructed and maintained in accordance with the provisions for Class 2 structure hardening and site and area requirements.

303.3.3 Unmapped Areas for Fire Intensity. Structures and parcels in unmapped areas that do not have a Wildfire Hazard Area designation shall be constructed and maintained in accordance with the provisions for Class 2 structure hardening and site and area requirements.

SECTION 304 GROUND-TRUTHING

304.1 Purpose. This section establishes a process for owners or the owners authorized representative to request a ground-truthing review of their property's Wildfire Hazard or fire intensity classification(s) as identified on state or locally adopted maps. The intent is to provide an opportunity to verify that mapping accurately reflects current, site-specific conditions.

304.2 Determination of Fire Intensity Classification and Code Requirements. As determined by the fire code official and code official, the fire intensity classification and associated requirements shall be based on a review of the vegetative fuels on the lot or parcel and within

300' of the property boundary, topography, local weather patterns, and fire behavior modeling data and in accordance with the following fire intensity classifications:

1. Low Fire Intensity Classification in accordance with Section 303.2.1
2. Moderate Fire Intensity Classification in accordance with Section 303.2.2
3. High Fire Intensity Classification in accordance with Section 303.2.3

This determination shall be made based on existing conditions or conditions that have been established by an approved development plan. Technical documentation shall be submitted in support of such request by a qualified wildfire professional and in accordance with Section 104.2.

Chapter 4- Structure Hardening

SECTION 401 GENERAL

401.1 Scope. Exterior design and construction of new buildings, alterations and additions that do not meet the threshold for exemption in Section 102.10 within the wildland-urban interface areas of unincorporated Pitkin County shall be constructed in accordance with this chapter.

SECTION 402 BUILDING MATERIAL

402.1 Building material. Building materials listed throughout Chapter 4 shall comply with the definitions in Section 202.

SECTION 403 CLASS 1 STRUCTURE HARDENING

403.1 General. Class 1 structure hardening shall be in accordance with Sections 403.2 through 403.4.2 and shall apply to buildings and structures hereafter constructed, modified or relocated into or within areas of the wildland-urban interface having a low fire hazard severity

403.2 Roofing. Roofs shall have a roof covering or roof assembly classified as Class A when tested in accordance with ASTM E108 or UL 790.

403.2.1 Flame and ember protection of roofs. For roof assemblies where the roof covering profile creates a space between the roof covering and roof deck, the space shall resist the entry of flames and embers by one or more of the following methods:

1. Firestopping with noncombustible material of the space between the roof covering and the roof deck.
2. Installation of one layer of cap sheet complying with ASTM D3909 over the combustible roof deck.
3. Installation of a listed Class A roof assembly.

403.2.2 Roof valley flashings. Valley flashings shall be not less than 0.019 inch (No. 26 galvanized sheet gage) corrosion-resistant metal installed over a minimum 36- inch-wide underlayment consisting of one layer of cap sheet complying with ASTM D3909 running the full length of the valley.

403.3 Gutters and downspouts. Gutters and downspouts shall be constructed of *noncombustible material*.

403.4 Ventilation Openings. Ventilation openings for enclosed attics, enclosed rafter spaces, and underfloor spaces shall be in accordance with Section 403.4.1 or Section 403.4.2 as applicable.

403.4.1 Performance Requirements. Ventilation openings shall be fully covered with listed vents, tested in accordance with ASTM E2886.

403.4.2 Prescriptive Requirements. Ventilation openings for enclosed attics, enclosed rafter spaces, and underfloor spaces shall be covered with noncombustible corrosion-resistant mesh with openings not to exceed 1/8-inch.

SECTION 404 CLASS 2 STRUCTURE HARDENING

404.1 General. Class 2 structure hardening shall be in accordance with Section 404 as well as the provisions of Class 1 structure hardening in Section 403 and shall apply to buildings and structures hereafter constructed, modified or relocated into or within areas of the wildland-urban interface having a moderate or high fire hazard severity.

404.2 Protection of eaves. Eaves and soffits shall be protected on the exposed underside with one of the following materials:

1. *Noncombustible materials*
2. *1" Fire-retardant-treated wood or (3/4" FRT ply)*
3. *Ignition-resistant materials*
4. Minimum 1-hour fire-resistance rating when tested in accordance with ASTM E119 or UL 263
5. Minimum 5/8-inch Type X gypsum board.
6. Solid sawn lumber not less than 2-inch nominal thickness.

404.2.1 Protection of Fascia. Fascias are required and shall be protected on the backside by materials listed in Section 404.2, excluding fire-retardant treated wood

404.3 Exterior Walls and Projections. Exterior walls of buildings or structures shall be constructed with one of the following methods:

1. *Non-combustible materials* on the exterior side
2. *Fire-retardant- treated wood* on the exterior side
3. *Ignition-resistant materials* on the exterior side

4. Assemblies having a minimum 1-hour fire-resistance rating when tested in accordance with ASTM E119 or UL 263, rated for exposure on the exterior side.
5. *Heavy timber construction*

Exceptions:

1. Exterior wall embellishments and architectural trim (exclusive of trim on exterior windows and doors) not to exceed 5 percent of the square footage of the exterior wall.
2. Roof or wall top cornice projections and similar assemblies.
3. Solid wood rafter tails and solid wood blocking installed between rafters having minimum dimension 2-inch nominal.

404.3.1 Exterior Wall Coverings. Exterior wall coverings shall be limited to the following:

1. *Noncombustible materials*
2. *Fire-retardant-treated wood*
3. *Ignition-resistant building materials*

404.3.2 Flashing. A minimum of 6 inches of metal flashing or noncombustible material applied vertically between the wall sheathing and the exterior cladding shall be installed at the ground, decking, and roof intersections. Combustible sheathing products exposed by the gap created at the base of the exterior walls, posts, or columns must be protected with noncombustible material or ignition-resistant building materials while still permitting drainage and moisture control from behind exterior cladding.

404.4 Underfloor enclosure. Buildings or structures shall have underfloor areas enclosed to the ground or comply with exterior walls in accordance with Section 404.3.

404.5 Decking. Unenclosed decks shall have the deck walking surface constructed with one of the following materials:

1. *Noncombustible materials*
2. *Fire-retardant-treated wood*
3. *Ignition-resistant building materials*
4. Class A-rated materials tested in accordance with ASTM E84 or UL 723
5. Class B- minimum rated composite decking materials tested in accordance with ASTM E84 or UL 723

404.6 Appendages and Projections. Appendages and projections shall be constructed in accordance with Section 404.3

404.7 Exterior Glazing. Exterior windows, window walls and glazed doors, windows within exterior doors, and skylights shall be tempered glass, multilayered glazed panels, glass block or have a fire protection rating of not less than 20 minutes. Window frames shall be prohibited from using vinyl or any other polymer-based products.

404.8 Exterior Doors. Exterior doors shall be constructed of one of the following:

1. *Noncombustible materials*
2. Solid core wood not less than 1 ¾-inches thick
3. Fire protection rating of not less than 20 minutes.

*Windows within doors and glazed doors shall be in accordance with Section 404.7.

Exception: Vehicle access doors.

404.9 Vehicle Access Door Perimeter Gap. Exterior vehicle access doors shall resist the intrusion of embers from entering by preventing gaps between doors and door openings, at the head, sill, and jamb of doors from exceeding ⅛ inch as approved by the Code Official. Gaps between doors and door openings shall be controlled by one of the following methods:

1. Weather-stripping products made of materials that: (a) have been tested for tensile strength in accordance with ASTM D638 (Standard Test Method for Tensile Properties of Plastics) after exposure to ASTM G155 (Standard Practice for Operating Xenon Arc Light Apparatus for Exposure of Non-Metallic Materials) for a period of 2,000 hours, when the maximum allowable difference in tensile strength values between exposed and non-exposed samples does not exceed 10 percent; and (b) exhibit a V-2 or better flammability rating when tested to UL 94 (Standards for Tests for Flammability of Plastic Materials for Parts in Devices and Appliances).
2. Door overlaps onto jambs and headers.
3. Garage door jambs and headers covered with metal flashing.

Chapter 5- Site and Area Requirements

11.35 SECTION 501 GENERAL

501.1 Scope. The areas surrounding structures and buildings, as applicable pursuant to Section 101 for Scope and General Requirements and Section 102 for Applicability, within the Wildland-Urban Interface areas of unincorporated Pitkin County shall be developed with the site and area requirements of this Chapter.

501.2 Reference. As needed, the code official shall refer to the Home Ignition Zone (HIZ) Guide as developed by the Colorado State Forest Service. Where conflicts occur between provisions of this code and the HIZ Guide, the provisions of this code shall govern. The provisions of this code, as applicable, shall take precedence over the provisions in the referenced standard.

501.3 Structure Ignition Zones and Measurements. The dimensions of the Structure Ignition Zones shall be measured from the exterior of the structure(s) and/or building(s) including exterior decks, stairs, roof overhangs, and attachments. All dimensions referenced in this section shall be inclusive of attached structures.

SECTION 502 CLASS 1 REQUIREMENTS

502.1 Structure Ignition Zone 1 Immediate Zone

502.1.1 Objective. This zone is designed to reduce or eliminate ember ignition and direct flame contact with buildings.

502.1.2 Structure Ignition Zone 1 Dimensions. The Structure Ignition Zone 1 is 0 to 5 feet, as measured pursuant to Section 501.3.

502.1.3 Materials. Use noncombustible, hard surface materials in this zone, such as rock, gravel, sand, concrete, bare earth or stone/concrete pavers. No firewood or other combustible material storage within this zone.

502.1.4 Plantings. Remove all plantings including shrubs, slash, combustible mulch and other woody debris. Ignition-resistant plantings are permitted.

502.1.5 Trees. There shall be no planting of new trees in the immediate zone.

502.1.5.1 Exception. Mature trees of no less than 10-inch diameter at 4.5 feet above ground level may be maintained.

502.1.5.2 Tree Crowns. Tree crowns extending to within 10 feet of any structure or building shall be pruned to maintain a minimum clearance of 10 feet.

502.1.5.3 Prune Tree Branches. Prune tree branches to a height of 6 to 10 feet from the ground or a third of the total height of the tree, whichever is less.

502.2 Site Signage

502.2.1 Reference County Code. Refer to Title 9, Section 9.08 for the County Code related to Roads and Public Places.

502.2.2 Reserved.

502.2.3 Marking of fire protection equipment. Fire protection equipment and fire hydrants shall be clearly identified in a manner approved by the code official to prevent obstruction.

502.2.4 Reserved.

502.3 Retaining Walls

502.3.1 Retaining Walls. Retaining walls shall be constructed with either noncombustible or ignition-resistant materials when any of the following conditions exist:

1. The retaining wall is within eight (8) feet of a structure regulated by this code or up to the property line when the property line is less than eight (8) feet away from the structure.
2. The retaining wall is integral to the support of a structure regulated by this code.
3. The retaining wall is integral to the egress from a structure regulated by this code to a public way, easement, or private road.

502.4 Fencing

502.4.1 Fencing. Fencing within eight (8) feet of a structure regulated by this code or up to the property line when the property line is less than eight (8) feet away from the structure shall be constructed with noncombustible or ignition-resistant materials. Fencing shall be prohibited from using vinyl or any other polymer-based products.

SECTION 503 CLASS 2 REQUIREMENTS

503.1 General. Class 2 site and area requirements shall be in accordance with this section, Section 503, as well as the provisions of Section 502 Class 1 site and area requirements.

503.2 Structure Ignition Zone 2 Intermediate Zone

503.2.1 Objective. This zone is designed to give an approaching fire less fuel, which will help reduce its intensity as it gets nearer to structures and buildings.

503.2.2 Structure Ignition Zone 2 Intermediate Zone Dimensions. Intermediate Zone Dimensions shall comply with either Section 503.2.1.1 or 503.2.1.2.

503.2.1.1 Standard Dimensions. For properties featuring slopes less than 30 percent within 30 feet of the building(s), the Intermediate Zone dimensions shall be between 5 and 30 feet as measured pursuant to Section 501.3.

503.2.1.2 Alternative Dimensions for Properties with Steep Slopes. Slopes of thirty (30) percent or greater increase the rate of fire spread. For building(s) located in proximity of steep slopes of thirty (30) percent or greater, the following adjustments are required for the Intermediate Zone dimensions.

503.2.1.2.1 Downslope Dimensions. The Structure Ignition Zone 2 Intermediate Zone shall be expanded to the downslope toe of the slope or the property line, not to exceed 100 feet, if building(s) meet the following criteria:

1. Downslope slopes in excess of thirty (30) percent are located within thirty (30) feet of the building(s).

503.2.1.2.2 Upslope Dimensions. The Structure Ignition Zone 2 Intermediate Zone shall be expanded to the upslope top of the slope or the property line, not to exceed 100 feet if building(s) meet the following criteria:

1. Upslope slopes in excess of thirty (30) percent are located within thirty (30) feet of the building, and
2. Existing buildings are located upslope.

503.2.3 Dead Materials. Within the Intermediate Zone, hazardous dead plant material must be removed from live vegetation.

503.2.4 Fuels Accumulation. Avoid large accumulations of surface fuels such as logs, branches, slash and combustible mulch.

503.2.5 Trees. See Section 504 for Forest Management Exceptions.

503.2.5.1 Individual Tree Spacing. Individual trees shall be spaced to create a minimum of ten (10) feet of space between tree crowns.

503.2.5.2 Tree Grouping Spacing. Groups of trees shall be spaced to create a minimum of thirty (30) feet of space between tree crowns or the perimeter of other groups of trees.

503.2.5.3 Prune Tree Branches. Follow Section 502.1.5.3 for tree branch pruning requirements.

503.2.5.4 Tree Grouping. Tree groupings shall primarily be two or three trees.

503.2.6 Shrubs. Shrub groups within this zone shall be spaced to prevent structure ignition.

503.2.6.1 Shrub Spacing from trees. Shrubs shall be at least 10 feet away from the edge of tree crowns.

503.2.6.2 Shrub Grouping Spacing. Spacing between shrub groupings shall be at least 2.5 times their mature height. Each shrub grouping shall have a total diameter of no more than twice the mature height of the vegetation. Example: for shrubs that grow six (6) feet tall, space clumps 15 feet apart or more (measured from the edge of the crowns of vegetation clumps).

503.2.6.4 Gambel Oak Pruning. Remove small diameter oak within the grouping. Remove sprouts growing parallel to the ground.

503.2.7 Plant Species. Ignition-resistant plantings are allowed in the Intermediate Zone. Common Ground Junipers are prohibited.

503.2.8 Grasses. Mow grasses to four (4) inches tall or less.

503.3 Structure Ignition Zone 3 Expanded Zone

503.3.1 Objective. This zone focuses on mitigation that keeps fire on the ground.

503.3.2 Structure Ignition Zone 3 Dimensions. The Structure Ignition Zone 3 is 30 to 100 feet, as measured pursuant to Section 501.3.

503.3.3 Trees. See Section 504 for Forest Management Exceptions.

503.3.3.1 Tree Spacing. Individual tree crowns and the perimeter of tree groupings within this zone shall be spaced at a minimum of six (6) to 10 feet.

503.3.3.2 Tree Grouping. Tree groupings shall be spaced to create a mosaic pattern of naturalized groupings (specifically, islands of tree groupings) with ground covers and meadows between the tree groupings.

503.4 Driveway Vegetation Requirements

503.4.1 Objective. The purpose of driveway vegetation requirements is to reduce fuels in proximity to the driveway surface and support emergency response.

503.4.2 Vegetation Requirements. For areas within thirty (30) feet on either side of the driveway edge of pavement, the following standards are required. The Fire Code Official may require additional vegetation requirements based on site-specific factors such as slopes.

503.4.2.1 Tree Spacing. Maintain a minimum of 10 feet between tree crowns or between the perimeter of tree groupings. Tree groupings are limited to three trees.

503.4.2.2 Prune Tree Branches. Remove ladder fuels pursuant to Section 502.1.5.3.

503.4.2.3 Shrubs. Follow shrub requirements pursuant to Section 503.2.6

SECTION 504 FOREST MANAGEMENT EXCEPTIONS

504.1 Objective. The site and area requirements in the sections above are primarily relevant for Ponderosa Pine, Douglas Fir, and mixed-conifer ecosystems below 9,500 square feet in elevation. The following requirements are specific for managing fuels in other types of ecosystems.

504.1.1 Pinon-Juniper.

504.1.1.1 Thinning. When thinning these trees on a property, create a mosaic pattern that is a mixture of individuals and groupings of three (3) to five (5) trees.

504.1.1.2 Spacing. The minimum spacing between the crowns of individual trees and groupings is 10 feet. Larger trees or trees located on slopes in excess of thirty (30) percent require increased spacing.

504.1.1.3 Pruning. Pruning is required for dead branches and permitted year-round. Pruning live branches shall be prohibited between April and October, when the pinion Ips beetle is active in Colorado. Live branches shall be pruned to be a minimum of three (3) feet from the ground, or a third of the height of the tree, whichever is less.

504.1.2 Lodgepole Pine.

504.1.2.1 Thinning. Thinning attempts shall be carefully approached for Lodgepole Pine to prevent windthrow. With a focus on the smaller trees, no more than thirty (30) percent of the trees in a mature stand should be removed in each thinning operation. Individual groupings shall be 30 to 50 trees.

504.1.2.2 Spacing. Spacing between the perimeter of Lodgepole Pine tree groupings shall be between 30 and 50 feet.

504.1.3 Spruce-Fir.

504.1.3.1 Thinning. Thinning attempts shall be carefully approached for Spruce-Fir to prevent windthrow.

504.1.3.2 Pruning. Follow Section 502.1.5.3 for pruning requirements.

504.1.4 Aspen.

504.1.4.1 Spacing and Pruning. Spacing and pruning shall not apply to mature stands of Aspen trees.

504.1.4.2 Remove Undergrowth. Remove young conifer trees and volunteer shrubs from the mature stands of Aspen trees.

§11.35 added [Ord. 018-2026, 03-25-2026](#)

11.36: INTERNATIONAL FIRE CODE

11.36.010: ADOPTION OF INTERNATIONAL FIRE CODE –

The County of Pitkin hereby adopts that certain Code known as the International Fire Code, 2021 edition, as published by the International Code Council Inc. 4051 West Flossmoor Road, Country Club Hills, Illinois, 60478-5795, save and except such portions as are hereinafter deleted, modified or amended as set forth herein (hereinafter "International Fire Code"). The International Fire Code shall include Appendix Chapters B and C, and shall specifically exclude Appendix Chapters A and D. In lieu of Appendix Chapter D, the Pitkin County Asset Management Plan shall be incorporated herein by reference. The Board further determines that the remaining Appendix Chapters E, F, and G shall be utilized by the Fire Districts as guidelines to the extent such appendices are applicable. Three (3) copies of the International Fire Code and this Ordinance shall be filed in the administrative office of the Pitkin County Building Department and the same are hereby adopted and incorporated as fully as if set forth verbatim herein, and from the date on which this Ordinance shall take effect, the provisions hereof shall be controlling within the boundary limits of the County.

The implementation, enforcement and administration of the International Fire Code within the County shall be the responsibility of the respective fire protection districts within their own jurisdiction consistent with each fire protection district's set of amendments. The County recognizes that each fire protection district maintains non-substantive variations with respect to their individual implementation, enforcement and administration of the International Fire Code and their respective Amendments.

11.44.020: PURPOSE

The International Fire Code establishes the minimum requirements consistent with nationally recognized good practice for providing a reasonable level of life safety and property protection from the hazards of fire, explosion or dangerous conditions in new and existing buildings, structures and premises and to provide safety to firefighters and emergency responders during emergency operations.

11.36.030: COPIES ON FILE

The Pitkin County Community Development Department shall keep on file in its office in Aspen, Colorado, a full and complete copy of the 2009 International Fire Code, as adopted by this Article, and said copies shall be open to public inspection at all times during the regular business hours of said Department.

11.36.040: SEVERABILITY

If any section, subsection, sentence, clause, phrase or portion of this ordinance is for any reason held invalid or unconstitutional in a court of competent jurisdiction, such portion shall be

deemed a separate, distinct and independent provision and shall not affect the validity of the remaining portions thereof.

11.36.050: AMENDMENTS TO THE 2021 INTERNATIONAL FIRE CODE

Adopted in its entirety with local amendments provided and maintained by each fire district.

Section 101.1 is hereby amended to provide that “County of Pitkin” shall be the proper name of the jurisdiction.

Section 103.2 is hereby amended and the following sentence is added to this section:

“The designated fire code official for those portions of unincorporated Pitkin County not within a fire jurisdiction, shall be the Pitkin County Sheriff’s Office who is permitted to consult and receive assistance from the closest adjacent responding fire authority.”

(adopted by Ord. 004-12)(amended (part) ord. 014-2016, 6-22-16)

11.40 INTERNATIONAL SWIMMING POOL AND SPA CODE

11.40.010 ADOPTION OF THE 2021 INTERNATIONAL SWIMMING POOL AND SPA CODE

11.44: CONTRACTOR LICENSING

It is unlawful for any person to violate any provisions of this chapter or to violate or refuse to obey any order issued by the chief building official or neglect to pay any fee assessed by the chief building official. (*Ord. 99-61 (part); prior code Title VII § 1-1*)

11.44.020: REVOCATION AND SUSPENSION

A. The chief building official shall have the authority to issue an order to show cause why the license issued hereunder to any licensee should not be suspended or revoked. Any such order shall grant the licensee ten (10) days in which to show cause and shall inform the licensee of the basis for issuance of the order.

B. The following acts or omissions of any person or firm holding a license under this chapter or any applicant for a license under this chapter shall constitute grounds for which the chief building official may suspend, revoke or refuse renewal of any license or deny an application for the license:

1. Causing or allowing to exist conditions hazardous to the health, safety and welfare of workmen and the public;
2. Violation of Pitkin County Code, including but not limited to the Land Use Code, the Uniform Building Code and related Uniform Codes as adopted, and the Colorado Revised Statutes; relating to buildings or construction or contractor licensing;
3. Failure to comply with any lawful order of the building official or his or her designated representative;
4. Misrepresentation or falsification of a material fact in an application to obtain a license or permit under this and other applicable codes;
5. Conviction of a misdemeanor or felony relating to the contractor's performance of construction work or the contractor's conduct of his or her construction business;
6. Failure to obtain a building or other applicable permit for any work as required by Pitkin County Code, including but not limited to the Land Use Code, and the Uniform Building Code and Uniform Codes as adopted;

7. Failure to ensure that the person with whom a subcontractor contracts has obtained valid building or other applicable permit for any work required by this code;
8. Contracting for or performing construction work that requires a particular license without holding a valid license for that work;
9. Use of a contractor's license to obtain building permits for another person's project for which the contractor will not be responsible;
10. Disregard or deviation from the plans and specifications approved by the building official for which the permit was issued without the approval of the building official;
11. Failure to ensure that any subcontractor hired by the contractor is licensed in compliance with the regulations set forth in this section;
12. Failure to appear after proper notice, as set forth in this section, at a building official hearing.
13. Failure to obtain and maintain a current Pitkin County use tax license through the county finance office. (*Ord. 99-61 (part); prior code Title VII § 1-1*)

**11.44.030: ISSUANCE OF PERMITS ONLY TO LICENSE HOLDERS OR AGENTS
AND
OWNER/BUILDERS**

A. On any work requiring a building permit(s), the permit(s) shall be issued only to licensed contractors, authorized representatives of licensed contractors, and owner-builders.

B. For purposes of this chapter, an "owner-builder" is an individual personally engaged in the construction (new or remodel) of a single-family residence or accessory, building for his or her own use. The following requirements shall apply to owner-builders seeking permits for construction:

1. The owner-builder shall not be issued more than one building permit for new home construction in any two-year period and not more than one building permit at a time;
2. The owner-builder has read applicable regulations and provisions of this chapter and applicable state law and affirmed in writing that the proposed project will comply with all such requirements;

3. It is the responsibility of the owner-builder to see that all paid personnel shall be covered by workman's compensation insurance as required by state law;
4. The owner-builder must be present at the work site during all inspections and conferences with the building division, unless prior arrangements have been made with the building officials.

In the event that any of the above listed requirements are not met at any time during the course of a permitted project, the chief building official may suspend or revoke the owner-builder's permit. In the case of a suspended building permit the owner-builder shall have a reasonable time to correct the problem. If not corrected within the time period, the permit may be revoked. In the case of either a suspended or revoked building permit, the owner-builder may ask for a review at the next scheduled building code board of appeals meeting. (*Ord. 99-61 (part); prior code Title VII § 1-1*)

11.44.040: COMPLIANCE WITH LAW AND SUPERVISORY CLAUSES AS REQUIRED

All licenses enumerated in this chapter shall be issued by the chief building official in accordance with the provisions of this code, and shall be subject to the supervisory clauses contained in this chapter. The chief building official is authorized to administer tests for the licenses and owner-builders as required by this chapter, as per the standards and regulations promulgated by the Board of Examiners for Standardized Testing. The chief building official is further authorized to recognize, for purposes of contractor licensing and owner builder permits, results of tests administered by other jurisdictions. (*Ord. 99-61 (part); prior code Title VII § 1-1*)

11.44.050: APPROVAL OF BUILDING OFFICIAL REQUIRED FOR ISSUANCE OF CERTAIN LICENSES

- A. No person may be issued a license to engage in the following listed trades, jobs, or contractual service as hereinafter enumerated unless approved by the chief building official.
 1. General contractor (unlimited);
 2. General contractor (commercial);
 3. General contractor (light commercial);
 4. General contractor (home builder);
 5. Specialty.
- B. All persons having valid licenses with the community development department to engage in the aforementioned trades, jobs, or contractual services, shall not be required to be examined by the chief building official. All persons must hold a license from the state, if required by the state, before engaging in any trade, job,

or contractual services within the county. (*Ord. 99-61 (part); prior code Title VII § 1-1*)

11.44.060: BUILDER'S LICENSES GENERALLY.

- A. General Contractor (Unlimited). This classification qualifies the holder to contract for the construction, alteration or repair of any structure of any type of construction and occupancy group as permitted by the International Building Code.
- B. General Contractor (Commercial). This classification qualifies the holder to contract for the construction of any structure of any type of construction and occupancy group as permitted by the International Building Code, with the exception of Type I and Type II buildings. Also this classification qualifies the holder for the alteration or repair of any structure of any type of construction and occupancy group permitted by the Building Code.
- C. General Contractor (Light Commercial). This classification qualifies the holder to contract for the construction, alteration, or repair of A-2, A-3, B, E, M, R, S-1, or U occupancy groups of any type of construction with the exception of Type I and Type II fire-resistive construction as permitted by the International Building Code.
- D. General Contractor (Home Builder). This classification qualifies the holder for the construction, alteration, or repair of buildings regulated by the International Residential Code.
- E. Specialty. This classification qualifies the holder to contract for work involving specialty trades regulated by the International Codes, including the following:
 - (1) Alteration & Maintenance;
 - (2) Concrete;
 - (3) Fire Alarm System Installation;
 - (4) Fire Sprinkler System Installation;
 - (5) Mechanical Contractor;
 - (6) Roofing;
 - (7) Solid Fuel & Gas Appliance;
 - (8) Temporary Contractor;
 - (9) Historic Preservation
- F. For the purposes of this section a contractor or sub-contractor hired specifically for one job, may be issued a Temporary Contractors License. It shall only be valid for six months. The applicant for a Temporary Contractors License shall only be required to complete an application; no testing shall be required. Only one Temporary Contractors License can be applied for within one year. (*Ord. 99-61 (part); Ord. 007-04 (part); Ord. 023-04) (part) prior code Title VII § 1-1*)

11.44.070: APPLICATION FOR LICENSEES WHO EMPLOY QUALIFIED SUPERVISORS

Each individual who acts as a supervisor on any work for which a permit is required must be tested in accordance with the provisions of this chapter for the work proposed to be done. *(Ord. 99-61 (part); prior code Title VII § 1-1)*

11.44.080: EXAMINATION FEE

Applications for licenses required by this chapter shall be accompanied by a fee of according to the most current Community Development Department's fee ordinance. *(Ord. 99-61 (part); Ord. 007-04 (part) Ord. 023-04; prior code Title VII § 1-1)*

11.44.090: EXAMINATIONS

- A. The chief building official, before issuing any license required by this chapter, shall require the applicant to take such examinations, written or oral, as the chief building official may determine to be appropriate. In lieu of such examination, the chief building official may recognize and accept the results of examinations administered by other governmental jurisdictions with which the county is a party to an intergovernmental agreement regarding recognition of such test results.
- B. Examinations shall be given at reasonable intervals. *(Ord. 99-61 (part); prior code Title VII § 1-1)*

11.44.100: INSURANCE

Every contractor granted a license under the terms of this chapter shall be required to maintain at all times employee liability and public liability insurance with minimum limits of not less than one hundred thousand dollars (\$100,000.00) for one person and three hundred thousand dollars (\$300,000.00) for any one accident, and property damage insurance with a minimum limit of not less than one hundred thousand dollars (\$100,000.00) for any one accident. *(Ord. 99-61 (part); prior code Title VII § 1-1)*

11.44.110: ANNUAL FEES

Holders of contractors' licenses shall be required to pay a registration fee according to the most current Community Development Department's Fee Ordinance. *(Ord. 99-61 (part); Ord. 007-04 (part); Ord. 023-04 (part) prior code Title VII § 1-1)*

11.44.120: COMPLIANCE WITH CHAPTER REQUIRED FOR ISSUANCE OF PERMIT

- A. No permit shall be issued to any contractor who has not first obtained a license as required in this chapter or who is delinquent in the payment of annual license fees, or

use taxes, or whose license has been suspended or revoked by action of the chief building official.

- B. A licensed contractor may apply for and be issued permits to only such work as he or she is entitled to do under their respective licenses.
- C. Any application for a permit or license filed in derogation of this section shall be deemed to have been filed with fraudulent intent and shall be a nullity. Any permit or license issued on the basis of such fraudulent application shall be null and void.
(Ord. 99-61 (part); prior code Title VII § 1-1)

11.44.130: STATE LICENSE REQUIRED

All persons performing plumbing or electrical work of any type regulated or licensed by the state of Colorado must hold valid state licenses before engaging in any trade, job or contractual service within the unincorporated county. *(Ord. 99-61 (part); prior code Title VII § 1-1)*

11.44.140: REGISTRATION OF ELECTRICAL AND PLUMBING CONTRACTORS

As a condition of performing services within the county, electrical and plumbing contractors shall register with the chief building official. Applicants for registration must demonstrate that they hold a valid contractor's license issued by the state. Registrations made under this section shall terminate every two years on the month and year of the State of Colorado license expiration.

Appeals of any final decision of the building official may be made pursuant to the bylaws of the building code board of appeals. *(Ord. 99-61 (part); Ord. 023-04 (part) prior code Title VII § 1-1)*

11.48: CARBON MONOXIDE DETECTORS

11.48.010: PURPOSE AND SCOPE

This chapter is enacted for the purpose of protecting the health and safety of the residents of the County, its visitors and employees, by requiring operable carbon monoxide detectors in existing residential occupancies thereby hopefully reducing the number of injuries and fatalities resulting from carbon monoxide (CO) poisoning.

The provisions of this ordinance shall apply to: 1) all new residential construction containing a sleeping unit; 2) additions to residential buildings containing a sleeping unit; 3) remodels of residential buildings containing a sleeping unit for which a building permit is required; 4) residential units where a fuel burning appliance is added or replaced and for which a permit is

required; 5) all existing residential buildings, including single family, duplex, townhome and multifamily.

11.48.030: DEFINITIONS

The following terms as used in this chapter shall have the indicated meaning:

BUILDING CODES: The building and other technical codes adopted pursuant to Title 11 of this code.

CO DETECTOR: A device sensing invisible particles of carbon monoxide that is either battery powered, AC powered with battery backup or connected to a system via an approved control panel that has been installed in accordance with its manufacturer's recommendations, which, when activated, will provide some form of visual or audible signal, and which has been either UL (Underwriters Laboratories Inc.) listed or CSA (Canadian Standards Association) approved.

DWELLING: Any building or portion thereof containing one or more dwelling units occupied as, or designed or intended for occupancy as, a residence by one or more families.

DWELLING UNIT: Any building or portion thereof designed, occupied, or intended as a residence, with complete and independent living facilities for one or more persons including permanent provisions for living, sleeping, eating, cooking and sanitation.

RESIDENTIAL OCCUPANCIES:

A. Any of the residential uses as such terms are defined and described in International Building Code and the International Residential Code as amended by the Pitkin County Code in Chapters 11.04 and 11.20.

B. Any residential occupancy or any institutional occupancy with sleeping units as such terms are defined in the building codes.

C. Any other occupancy used for sleeping purposes.

SEPARATE SLEEPING AREA: Bedrooms or sleeping rooms separated by other use areas, such as a kitchen or living room, but not including bathrooms.

SLEEPING UNIT: A room or space in which people sleep, which can also include permanent provisions for living, eating, and either sanitation or kitchen facilities but not both.

11.48.040: RESPONSIBILITIES

A. All existing residential occupancies and all residential occupancies to be constructed in the future shall be equipped with CO detectors in accordance with the requirements of this chapter.

B. The owner of a residential occupancy shall be responsible to: 1) Install and maintain required CO detector(s) in such residential occupancy in accordance with the requirements of this chapter; 2) Test and replace all batteries necessary for operation of a required CO detector, except for dwellings or dwelling units where the tenant has been notified of such responsibility; 3) Immediately repair or replace any defective CO detector required under the provision of this chapter.

C. The owner of a dwelling or dwelling unit that is rented or leased to a tenant, shall: 1) Immediately, upon notice from the tenant, repair or replace a defective CO detector required to be located within such dwelling or dwelling unit, except that the owner need not repair or replace any CO detector where the defective condition was caused by the tenant, the tenant's family, or the tenant's guests or invitees, by inappropriate use or misuse of the dwelling or dwelling unit during the rental term or any extension of it; 2) Install new batteries in any required CO detector at the beginning of a new lease or tenancy; 3) Furnish to the tenant at the beginning of a new lease or new tenancy written notice of the owner's responsibility to install and maintain a required CO detector on the premises.

D. A tenant in possession of a dwelling or dwelling unit shall be responsible for: 1) Testing and replacing any batteries necessary for operation of a required CO detector; 2) Informing the owner of a CO detector malfunction; and 3) Repairing or replacing defective CO detectors in the event that the defective condition was caused by the tenant, the tenant's family, or the tenant's guests or invitees, by inappropriate use or misuse of the dwelling or dwelling unit during the rental term or any extension of it.

11.48.050: CO DETECTOR / INSTALLATION REQUIREMENTS

A. CO detector(s) shall be centrally located outside of each separate sleeping area in the immediate vicinity of the bedrooms or sleeping rooms and on each level of the residence. Residential occupancies shall be considered to be in compliance with this requirement if CO detector(s) are installed within a dwelling unit such that an audible signal not less than 70 decibels reaches each sleeping area. CO detectors shall be hard wired or connected to a system via an approved control panel in new construction. In interior alterations, repairs or additions requiring a permit, or when one or more sleeping rooms are added or created in existing dwellings, detectors shall be hard wired or connected to a system via an approved control panel where the alterations or repairs result in the removal of interior wall or ceiling finishes unless there is an attic, crawlspace or basement available which would provide access for hard wiring.

B. CO detectors are required in sleeping units containing fuel burning appliances, e.g. gas clothes dryer, decorative gas fireplace, wood burning appliance, etc.

C. It is the intention of this chapter to implement the requirements of the existing building codes, including the latest edition of National Fire Protection Association #720, to the greatest extent practicable for existing residential occupancies. The building official or the fire marshal may approve alternative locations or methods for the installation of CO detectors, if the result would meet the spirit and intent of the building codes and NFPA #720. The building official, in coordination with the fire marshal, may also adopt written guidelines illustrating or describing required locations of CO detectors, and any approved alternative locations or methods for bringing residential occupancies into compliance with the requirements of this chapter.

D. A CO detector is deemed approved for purposes of this chapter if it complies with all applicable state and federal regulations, and bears the label of a nationally recognized standard testing laboratory and meets the revised standard of at least ANSI/UL 2034, Single and Multiple Station Carbon Monoxide Alarms, or ANSI/UL 2075, Gas and Vapor Detectors and Sensors, and subsequent revision or its equivalent. The CO detector may be a combination smoke/gas/CO device.

E. Each CO detector will be mounted in accordance with the manufacturer's instructions, though ceiling mounting is preferred. CO detector(s) will not be mounted in areas of low air movement (dead air spaces),

F. If a CO detector is required to be installed in a common hallway and found to be tampered with it shall be replaced with a hard-wired device (missing or inoperable batteries shall not constitute tampering) or replaced with a system-connected detector.

G. In new construction, the required CO detector shall receive its primary power from the building wiring when such wiring is served from a commercial source, and when primary power is interrupted, shall receive power from a battery or from an approved control panel. Wiring shall be permanent and without a disconnecting switch other than those required for over current protection. CO detectors shall be permitted to be battery operated when installed in buildings without commercial power or in buildings that undergo alterations, repairs or additions as stipulated in Section 11.38.050 A.

11.48.060: PROHIBITIONS

A. It shall be unlawful for any owner of a residential occupancy to fail to install and maintain an operable CO detector when required under the provisions of this chapter.

B. It shall be unlawful for any person to remove or render ineffective a CO detector installed to satisfy the requirements of this ordinance. This provision shall not apply to a building owner, manager or his/her agent in the normal procedure of repairing or replacing a CO detector.

C. No person shall, without privilege to do so, knowingly move, deface, damage, destroy or otherwise improperly tamper with a CO detector required to be installed pursuant to

the provisions of this chapter so as to destroy or diminish its effectiveness or availability for its intended purpose.

11.48.070: ENFORCEMENT RESPONSIBILITY

The building official and the fire code official, or their designees, shall monitor compliance with this chapter and may perform enforcement inspections upon, but not limited to, the following instances: when notified of a change in occupancy; when reviewing or inspecting the construction, repair, rehabilitation or renovation of the interior of a residential occupancy pursuant to a required permit, when inspecting at the request of the building owner or his representative; when inspecting for any other purpose under the provisions of this code; or when on the premises for any lawful purpose, including but not limited to such purposes as responding to a fire or other request for fire department services.

11.48.080: PENALTIES AND REMEDIES FOR VIOLATIONS

A. Violations, Criminal Enforcement and Penalties

- 1) Violations of any section of §11.38 of the Pitkin County Code shall be a Class 2 Petty Offense with a maximum fine of \$1000 and /or imprisonment for a period not to exceed 90 days or the maximum allowable by state law. The building official and the fire code official, or their designees, shall be authorized to serve either a Summons and Complaint or Penalty Assessment, as specified in this Section on any person who violates the provisions of this Ordinance.
- 2) Failure to provide carbon monoxide detectors as specified by this Ordinance shall be subject to penalty assessment as follows:
 - First Offense: \$250.00
 - Second Offense: \$500.00
 - Third and additional offenses: Summons and Complaint to appear before the Pitkin County Court.
- 2) Summonses and Complaints shall be referred to the District Attorney for prosecution in Pitkin County Court. Nonpayment of a Penalty Assessment shall result in prosecution of the Penalty Assessment as a Summons and Complaint pursuant to § 16-2-201, C.R.S., as amended. In such case the penalty schedule set forth in this § 11.38.070 (2) shall be followed
- 4) Any Person who aids, assists or abets any other Person in committing a violation of these regulations shall be subject to the penalties specified in §11.38.070 (2) dependent upon on whether the person aided or assisted is subject to Penalty Assessment or Summons and Complaint.
- 5) Each day a violation of §11.38 of the Pitkin County Code continues shall be considered a separate offense for purposes of penalties.

- 6) In the case of a property being designed such that multiple rooms require a detector and there are multiple violations within that property, together they shall constitute one violation for the given day

B. Violations, Civil Enforcement.

- 1) Notice of Violation. In addition to utilizing the enforcement procedures authorized by this Ordinance, the building official and the fire code official or their designees may deliver a Notice of Violation (NOV) to any person who violates this Ordinance. The NOV shall specify the violation, and may require that the violator either cease and desist immediately from all acts or omissions relating to the violation, or correct the violation within a specified time not to exceed 90 days. Failure to comply with the terms of an NOV shall result in enforcement pursuant to §11.38.080 (2-6). Issuance of a Notice of Violation shall not be deemed a condition precedent to enforcement pursuant to the procedures set forth in §11.38.080, nor shall it preclude later enforcement action pursuant to §11.38.080.
- 2) Civil Enforcement. In the event of any act or omission that violates any section of this Ordinance, the County Attorney, in addition to other remedies provided by law or specified herein, may institute an injunction, mandamus, abatement, or other appropriate civil action or proceeding to prevent, enjoin, or abate any unlawful activity, or to remove any improvements or construction resulting from such unlawful activity. In the event that such unlawful activity has damaged any county property, the violator shall be liable for any damage to county property resulting from any such unlawful activity, including, but not limited to, compensation for staff time and for use of county equipment or contracted services to repair such damage. Any civil action or proceeding may include a claim to recover all such money damages in addition to any and all claims for injunctive or other equitable relief.
- 3) Withdrawing or Withholding Permits. In the event that Community Development or designee, Code Enforcement Officer, or designee has personal knowledge of any violation of this Ordinance, any Community Development issued permit may be withdrawn after the violator is provided notice and an opportunity for hearing before the Board of County Commissioners. No further permits or approvals from the County shall be issued for any property generating a violation until the violation is brought into compliance with the standards of this Ordinance.

11.48.090: EFFECTIVE DATE

All owners of residential occupancies shall come into compliance with the requirements of this chapter on or before March 2, 2009. (*enacted ord. 03-09*)

